Annexure Part B — Deletions, amendments and additions

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

The following clauses or parts of clauses have been deleted from the General Conditions in AS 4300-1995:

1. Clauses 17.2, 35.7, 35.8, 40.3 and 43.1.

The following clauses have been amended and differ from the corresponding clauses in AS 4300-1995:

2. Amend all applicable clauses as follows:

   a. insert '*in the Contract Header*' directly after any reference to *'Annexure Part A';* and

   b. replace any references to '*Formal Instrument of Agreement'* with '*Contract Header'*.

3. Amend clause 1 as follows:

   a. Insert the following at the end of clause 1:

   '*Unless expressly stated otherwise in the Contract, the rights and remedies under any indemnity or otherwise provided under the Contract are cumulative and not exclusive of any rights or remedies provided by law or any other right or remedy.*

   Each indemnity in the Contract is a continuing obligation, separate and independent from the other obligations of the parties, and survives termination, completion or expiration of the Contract. It is not necessary for a party to incur expense or to make payment before enforcing a right of indemnity under the Contract. A party must pay, as a debt due and payable, on demand any amount it must pay under an indemnity in the Contract.

   Any amount which the Contractor is expressly liable to pay or reimburse to the Principal under the Contract will be a debt due and payable to the Principal in the time expressly provided or otherwise on demand.'

4. Amend clause 2 as follows:

   a. Insert following definitions in clause 2 to read as follows:

   '***Additional Obligation Documents*** *have the meaning given to it in Clause 8.9;'*

   '***Approved or Permitted*** *will mean approved or permitted by the Superintendent in writing, subject to the requirements of the Contract;'*

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*'**As-Built Documentation** means a complete set of the working documentation with all amendments, specifications and addenda made during the performance of the work under the Contract, reflecting the actual state of the Works at Practical Completion or earlier termination of the Contract, and includes drawings, data sheets, reports, operation and maintenance manuals and asset registers;'*

*'**Business Day** means a day which is not:*

(a) a Saturday or Sunday; or

(b) a public holiday, bank holiday or special holiday in the place stated in Item 2; or

(c) a day occurring on or within the period of 22 December to 10 January; or

(d) a day specified in Item 2A;'

*'**Change of Control** means:*

(a) a change in the shareholding of the Contractor such that a change in control (as defined in the Corporations Law) of the Contractor occurs (whether occurring at the one time or through a series of transfers or issues of securities); or

(b) any other event (including a change or alteration occurs in the corporate structure of the Contractor or the group of companies of which the Contractor is a member) occurs which results in a person other than the shareholders of Contractor at the date of this Contract:

A. controlling the composition of the board of directors of the Contractor;

B. controlling the voting power of the board of directors or any class of shareholders, or both, of the Contractor; or

C. holding more than one half of the issued share capital (either beneficially or otherwise) of the Contractor,

other than where shares or other equity interests in an entity are listed on any recognised Australian or overseas stock exchange and a Change of Control occurs due to any change in the legal or beneficial ownership of any such listed shares or interests;'

*'**Claim Precondition** has the meaning in Clause 14C.2(c);'*

*'**Compensable Cause** means an event described in Clause 35.5(d)(i) and otherwise specified in Annexure Part A in the Contract Header;'*

*'**Contract Header** means the document of that name which is executed by the parties to the Contract;'*

*'**Contract Material** means all material which is created in connection with, or for the purposes of performing, the work under the Contract;'*

*'**Contractor's Plans** means each of the plans that the Contractor must prepare pursuant to Clause 14H;'*

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*'**Corporations Law** means the Corporations Act 2001 (Cth);'*

*'**Delay Rate** means the rate set out in the Schedule of Agreed Damages for Delay, or if no Delay Rate is set out, the rate calculated according to the formula set out in the Schedule of Agreed Damages for Delay;'*

*'**Excepted Latent Conditions** has the meaning in Clause 12.1;'*

*'**Heavy Vehicle** has the meaning given in the Heavy Vehicle National Law Act 2012 (Qld);'*

*'**Heavy Vehicle Law**' means any Legislative Requirement, principles of law or equity established by decisions of Australian Courts or requirements of persons with obligations relating to Heavy Vehicles, including the Heavy Vehicle National Law Act 2012 (Qld) and the Heavy Vehicle National Law Regulation 2014 (Qld);'*

*'**Heavy Vehicle Safety Requirement** means:*

(a) any Heavy Vehicle Law; and

(b) the requirements of:

(i) Policies and Plans;

(ii) industry standards, codes, practices and guidelines; and

(iii) any other provisions of this Contract,

relating to the operation of Heavy Vehicles;'

*'**Inspected, directed, required, reviewed** or the like means that function that is to be undertaken by the Superintendent and, where the context reasonably infers, involvement by an administrative authority, subject to the requirements of the Contract;'*

*'**Intellectual Property Right** means any patent, design (whether registered or not), trademark or name, copyright or other protected right;'*

*'**Item** means an item in Annexure Part A in the Contract Header;*

***'Methodology and Resourcing Documents** means:*

(a) the documents listed in Annexure Part A in the Contract Header or described in the Contract as methodology and resourcing documents; and

(b) any methodology or resourcing list, plan, program, statement, outline, answered questionnaire or other document describing the methodology or resourcing to be applied or used by the Contractor in carrying out the work under the Contract (including any site management plan or plant or equipment list) provided by the Contractor in connection with its tender or the Contract and approved by the Principal or the Superintendent,

excluding any document which forms part of the Contract;'

*'**Moral Right** has the meaning conferred by the Copyright Act 1968 (Cth);'*

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*'**NGERS** means the National Greenhouse Energy Reporting Act 2007 (Cth) and its regulations and any other legislation which may be introduced regarding greenhouse gas emissions, energy consumption and energy reporting obligations;'*

*'**Non Principal Contractor Site** means those parts of the Site (if any):*

(a) described in Item 27A to be a Non Principal Contractor Site (if any);

(b) directed by the Superintendent to be a Non Principal Contractor Site at any time before or after they are made available to the Contractor under the Contract; or

(c) which have previously been handed over to the Principal following Practical Completion of the Works within or upon those parts of the Site;'

*'**Notice** means a notice in writing which may be given by personal delivery, pre-paid postage or email;'*

*'**Notice of Access to Site** means the notice given by the Superintendent to the Contractor setting out the date that the Principal will give the Contractor access to the Site;'*

*'**Notifiable Incident** has the meaning in the Work Health and Safety Law;'*

*'**Payment Certificate** has the meaning in Clause 42.1 and, for the purposes of Clauses 14D.5 and 16.1, includes a payment schedule issued pursuant to the Security of Payment Act in accordance with Clause 14C.5;'*

*'**Payment Claim** means a claim for a Progress Payment made by the Contractor in accordance with the Contract (including Clause 14C and Clause 42) and includes a 'payment claim' for the purposes of the Security of Payment Act;'*

*'**Payment Withholding Request** has the meaning given in the Security of Payment Act;'*

*'**Policies and Plans** means all requirements, policies, procedures, guidelines, rules and plans of the Principal as may be amended from time to time (including those set out or referenced in this Contract and including the Institute of Public Works Engineering Australia 'Asset Design As-Constructed guidelines for the provision of asset design as constructed data');'*

*'**PPSA** means the Personal Property Securities Act 2009 (Cth);'*

*'**Principal Contractor Site** means those parts of the Site:*

(a) not comprising any Non Principal Contractor Site; and/or

(b) described in Item 27A to be a Principal Contractor Site (if any);

*'**Principal's Contract Works Insurance** ('the Policy')' means the insurance policy currently held by the Principal for contracts involving construction and /or maintenance works as defined by the terms of that policy and offering limited cover under the terms of this Contract;'*

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*'**Progress Payment** means a payment to which the Contractor is entitled to claim in accordance with the Contract (including Clause 14C and Clause 42) and includes a 'progress payment' for the purposes of the Security of Payment Act;'*

*'**QBCC Act** means the Queensland Building and Construction Commission Act 1991 (Qld);'*

*'**Record** means those documents, information, records and other things referred to in Clause 48C(a);'*

*'**Response Period** means the period:*

(a) 10 Business Days; or

(b) where the Payment Claim is made by the Contractor under the Security of Payment Act, any longer period permitted for the service of a corresponding payment schedule under the Security of Payment Act;'

*'**Safe Work Method Statement** means a statement to be developed under the Specifications;'*

*'**Schedule of Agreed Damages for Delay** means the document attached to Schedule 5 of the Contract Header;'*

*'**Schedule of Quantities and Prices** means the document attached to Annexure 1 of the Contract Header;'*

*'**Security Interest** includes any mortgage, pledge, encumbrance, lien or charge or any security or preferential interest or arrangement of any kind. It includes:*

(a) anything which gives a creditor priority to other creditors with respect to any asset;

(b) any assignment by way of security, hypothecation, option, lease, trust or assignment;

(c) retention of title;

(d) any 'security interest' under the PPSA; and

(e) any agreement to create or give an arrangement to effect any of the above;'

*'**Security of Payment Act** means the Building Industry Fairness (Security of Payment) Act 2017 (Qld);'*

*'**Subcontractors' Charges Legislation** means Chapter 4 of the Building Industry Fairness (Security of Payment) Act 2017 (Qld);'*

*'**Submitted** means submitted to the Superintendent for review, subject to the requirements of the Contract;'*

*'**Work Health and Safety Law** means any Legislative Requirement, principles of law or equity established by decisions of Australian Courts or requirements of persons acting in the exercise of statutory powers relating to health and safety, including the*

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Work Health and Safety Act 2011 (Qld) and the Work Health and Safety Regulation 2011 (Qld);'

'***Work Health and Safety Requirements*** *means:*

(a) any Work Health and Safety Law; and

(b) the requirements of:

(i) Additional Obligation Documents;

(ii) the Contractor's Plans (including methodology statements and the like);

(iii) any manufacturer's recommendations associated with any equipment or materials to be used for the purposes of carrying out the work under the Contract or to be installed as part of the work under the Contract;

(iv) any condition of accreditation (whether present or future) imposed by the Federal Safety Commissioner pursuant to section 16 of the Fair Work (Building Industry – Accreditation Scheme) Regulation 2016 (Cth) notified to the Contractor from time to time;

(v) industry standards, codes, practices and guidelines; and

(vi) any other provisions of the Contract,

relating to health and safety;'

b. Amend the following definitions in clause 2 as follows:

i. Replace the definition of Legislative Requirements with the following:

'***Legislative Requirements*** *includes:*

(a) Acts, Ordinances, regulations, by-laws, orders, awards and proclamations of the Commonwealth and the State or Territory in which the work under the Contract or any part thereof is being carried out;

(b) certificates, licences, consents, permits, approvals , codes, standards and requirements of organisations having jurisdiction in connection with or recognised generally as authorities in respect to the carrying out of the work under the Contract or the handling, disposal or use of the material removed from the Site, including the requirements of any local government or other authority; and

(c) Australian Standards, the Building Code of Australia and any other relevant standards;

(d) without limiting the foregoing, any condition of accreditation (whether present or future) imposed by the Federal Safety Commissioner pursuant to section 16 of the Fair Work (Building Industry –

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Accreditation Scheme) Regulation 2016 (Cth) notified to the Contractor from time to time; and

(e) fees and charges payable in connection with the foregoing;'

ii. Replace the definition of Practical Completion with the following:

*'**Practical Completion** is that stage in the execution of the work under the Contract when:*

(a) the Works are complete except for minor omissions and minor defects:

(i) which do not prevent the Works from being reasonably capable of being lawfully and safely used for their stated purpose;

(ii) which the Superintendent determines the Contractor has reasonable grounds for not promptly rectifying; and

(iii) rectification of which will not prejudice the convenient use of the Works;

(b) those tests (including commissioning) which are required by the Contract to be carried out and passed before the Works reach Practical Completion, have been carried out and passed; and

(c) documents and other information required under the Contract which, in the opinion of the Superintendent, are essential for the use, operation and maintenance of the Works, have been supplied;

(d) all keys and other security or locking devices relating to all parts of the Works have been delivered to the Superintendent;

(e) the Contractor has cleaned the Site and removed all rubbish and surplus material from the Site;

(f) the Contractor has provided to the Superintendent the final drafts of the As-Built Documentation;

(g) the Contractor has provided to the Superintendent all certificates, permits, consents and approvals for completion and occupation as required by Legislative Requirements for the use, occupation and operation and maintenance of the Works (except those which are the Principal's responsibility under the Contract); and

(h) the Contractor has satisfied any other requirements referred to in the Contract to achieve the stage of 'practical completion';

iii. For the definition of **Schedule of Rates**, replace '*any schedule included in the Contract*' with '*the document attached to Annexure 2 of the Contract Header*'.

iv. For the definition of **subcontractor** delete '*in Clauses 9,10 and 11(b)'.*

c. At the end of clause 2, insert the following paragraph:

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'A reference to legislation or a legislative provision includes:

(a) any modification or substitution of that legislation or legislative provision; and

(b) any subordinate legislation issued under that legislation or legislative provision including under that legislation or legislative provision as modified or substituted;'

5. Amend clause 3 as follows:

a. Insert the following sentence at the end of clause 3.1:

'The previous clause does not preclude the provision of all or some of the supply under Clause 40 of the Contract at the Principal's sole option.'

b. In clause 3.2 insert *'Schedule of Quantities and Prices or'* before referenced to *'Schedule of Rates'.*

c. Replace clause 3.3 with the following:

*'**Adjustment for Actual Quantities—adjustment to the Contract Sum***

Where otherwise than by reason of a direction of the Superintendent to vary the work under the Contract, the actual quantity of an item required to perform the Contract is greater or less than the quantity shown in the Schedule of Quantities and Prices or Schedule of Rates, which, pursuant to Clause 3.2A, forms part of the Contract:

(a) where the Principal accepted a lump sum for the item, Contractor will carry out the actual items or quantities required to comply with the Contract and the Contractor will not be entitled to any claim for an extension of time, adjustment to the Contract Sum, delay costs or any other claim whatsoever; and

(b) where the Principal accepted a rate for the item, the rate will apply to the greater or lesser quantities; and

(c) the Contractor will not be entitled to any other claim whatsoever for the difference in quantities.

If a Schedule of Quantities and Prices or Schedule of Rates omits an item which should have been included, the item, rate or element of work which should have been included, the error will be at the Contractor's risk and the Contractor has no entitlement to any claim of any kind for the omitted item, rate or element of work (and such omission will be deemed to be included in the Schedule of Quantities and Prices or Schedule of Rates at no cost or risk to the Principal).'

6. Amend clause 4 as follows:

a. In subclause 4.1(b) delete the words '*identified in the Contractor's tender and'.*

7. Amend clause 5 as follows:

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a. In clause 5.1, after the word '*Contract*' insert the following '*and for the purpose of enabling the Principal to meet its obligations under the Subcontractors' Charges Legislation'*

b. Replace clause 5.2 with the following:

'Unless nominated otherwise in Annexure Part A in the Contract Header, the Contractor must provide security in the amount of 5% of the Contract Sum (including any provisional sums).

If it is provided in Annexure Part A in the Contract Header that the Principal must provide security then the Principal must provide security in the amount stated in Annexure Part A in the Contract Header and in accordance with Clause 5.

All security nominated for the Contract must comply with this clause.'

c. Replace clause 5.3 with the following:

'Unless nominated otherwise in Annexure Part A in the Contract Header, the security must be in the form of two approved unconditional undertakings, each worth 50% of the security amount given by an approved financial institution, or other form approved by the Principal. For the avoidance of doubt, a reference to security includes retention moneys if applicable.

The party having the benefit of the security will have a sole and unfettered discretion to approve or disapprove of the form of an unconditional undertaking and the financial institution giving it or other form of security offered. The form of undertaking in Annexure Part C is approved.

If the security is not transferable by delivery, it must be accompanied by an executed transfer or such other documentation as is necessary to effect a transfer of the security. The costs (including all stamp duty or other taxes) of and incidental to the transfer and retransfer, must be borne by the party providing the security.

Security provided by the Contractor under this Contract must not include any time for expiry or an expiry date.'

d. Replace clause 5.4 with the following:

'The Contractor must provide the security to the Principal within 14 days of the date of award of this Contract and otherwise in accordance with clause 8 of Schedule 4 of the Contract Header (if applicable).

The date on which a Payment Claim may be made does not occur until the Contractor has provided security in accordance with this Clause 5.'

e. Replace clause 5.6 with the following:

'The Principal may at any time convert into money security that does not consist of money whether or not the Principal is then entitled to exercise a right under the Contract in respect of the security. The Principal will not be liable in any way for any loss occasioned by such conversion.

The Principal may have recourse to retention moneys, cash security or to moneys obtained by conversion of security:

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(a) where the Principal has express right of recourse under the Contract or at law;

(b) for any amount due which remains unpaid after the time for payment, or where there is no time for payment specified, remains unpaid after 5 Business Days after demanding payment; or

(c) for any amount bona fide claimed by the Principal under or in connection with the Contract (whether liquidated or otherwise) which remains unpaid after 5 Business Days after demanding payment.

Before releasing to the Contractor pursuant to Clauses 5.7 or 5.8 any security or any part thereof that is remaining after the Principal has exercised all or any of its rights under the Contract in respect of the security (except for those set out in this clause), the Principal may ascertain the existence and amount of any Subcontractors' Charge (meaning a Notice of Intention to Claim Charge made or given to the Principal by any Subcontractor concerning the performance of work for a Contractor (as those terms of "Subcontractor", "Contractor" and "Work" are defined in the Subcontractors' Charges Legislation) purportedly pursuant to the provisions of the Subcontractors' Charges Legislation).

In the event that any such subcontractors' charge is claimed, the Principal may convert into money any security or any part thereof then remaining that does not consist of money whereupon any money so obtained must be credited against any amounts payable to the Contractor pursuant to the Contract in complete or partial satisfaction of the contract price (as the term is defined in the Subcontractors' Charges Legislation) and, subject to the Principal's rights, pay into court the money.'

f. Replace clause 5.7 with the following:

The Contractor may request at any time permission to provide an unconditional undertaking approved in writing by the Principal and given by a financial institution approved in writing by the Principal to be held by the Principal in lieu of retention moneys. The Principal may in its sole and unfettered discretion and without giving reasons reject any such request by the Contractor.

The form of undertaking in Annexure Part C is approved.

In the event that the Contractor requests to provide an unconditional undertaking and the Principal elects to agree to the request - the following provisions will apply notwithstanding any other provision in the Contract to the contrary:

(a) the undertaking must be for an amount required under Clause 5.2 and must be lodged with the Principal;

(b) unless and until the expiration of a period of five Business Days after the undertaking is lodged, retention moneys must be deducted in accordance with Clause 42.1;

(c) five Business Days after the lodgement of the undertaking - retention moneys pursuant to Clause 42.1 will not be deducted and all retention moneys previously deducted (if any) pursuant to Clause 42.1 will be the subject of the next following Payment Certificate issued by the Superintendent with appropriate amounts credited to the Contractor;

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(d) subject to the rights of the Principal under the Contract, the provisions of Clauses 5.6, 5.8 and 42.6 will apply to the undertakings; and

(e) an undertaking given pursuant to this clause will be regarded as a performance undertaking with purposes as set out in Clause 5.1.

g. Replace clause 5.8 with the following:

'Upon the later of the issue of the Certificate of Practical Completion and the provision of the final accepted As-Built Documentation in accordance with the Contract, the Principal's entitlement to security must be reduced to the percentage thereof stated in Annexure Part A in the Contract Header or, if no percentage is stated, to 50 per cent thereof.

Upon the issue of the Certificate of Practical Completion, the Contractor's entitlement to security must be reduced to the percentage thereof stated in Annexure Part A in the Contract Header or, if no percentage is stated, to 50 per cent thereof.

The Principal must release security and retention moneys in excess of the entitlement within 14 days of the entitlement being so reduced.

The Contractor must release security in excess of the entitlement within 28 days of the entitlement being so reduced.'

h. In clause 5.9 amend the time period to release the additional security from '*14*' to '*28*' days.

i. In clause 5.10 delete the entirety of '*Alternative 1*' and delete the title of '*Alternate 2*'.

j. In clause 5.11 insert the following paragraphs prior to the last paragraph of the clause:

'*The parties agree that if there is a permitted Change of Control of the Contractor after the Date of Acceptance of Tender:*

(c) the Contractor must, if requested by the Principal within 21 days of receiving notice from the Contractor that the permitted Change of Control has occurred, provide the Principal within 14 days of that request having been made, a Deed of Guarantee, Undertaking and Substitution in the same form as the first Deed of Guarantee, Undertaking and Substitution duly executed by the Contractor and a subsidiary of the Contractor approved by the Principal following the Change of Control for the performance of the obligations and the discharge of the liabilities of the Contractor under the Contract; and

(d) if a Deed of Guarantee, Undertaking and Substitution is provided in accordance with paragraph (c), any Deed of Guarantee, Undertaking and Substitution provided by the Contractor from a subsidiary prior to the Change of Control will no longer be valid.'

8. Amend clause 6 as follows:

a. Replace the heading and first paragraph in clause 6.2 as follows:

'6.2 Contract Header

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If it is provided in Annexure Part A in the Contract Header that the parties execute a Contract Header, the Principal must prepare in duplicate a Contract Header and must forward it to the Contractor with a request that it be executed. If the conditions of offer require a Contract Header, the Principal must prepare in duplicate a Contract Header and must, within 28 days of the Date of Acceptance of Tender, forward it to the Contractor with a request that it be executed in the manner directed in writing by the Principal.

9. Replace clause 7 with the following clauses:

'***7.1A Method of service***

A notice under this Contract must be given by:

(a) hand;

(b) mail; or

(c) email, except for notices and other documents pursuant to Clauses 42.5, 44, 46 and 47.

7.1B Security of Payment Act Notices

Subject to clause 7.1C(b)(iii), where a notice or other documents is given pursuant to the Security of Payment Act, it must be served by email to the address set out in Item 19A of Annexure Part A in the Contract Header.

If clause 7.1C(b)(iii) applies to any notices or other documents given or purportedly given pursuant to the Security of Payment Act by email, such notices or other documents must be served by post to the other address for service of Security of Payment Act notices set out in Item 19B of Annexure Part A in the Contract Header in a method of service other than email.

The Contractor must immediately notify the Principal and the Superintendent in writing upon serving a notice or other documents under the Security of Payment Act.

7.1C Deemed Service

A notice (and other documents) must be deemed to have been given and received:

(a) if addressed or delivered to the relevant address in the Contract or last communicated in writing to the person giving the notice; and

(b) on the earliest date of:

(i) actual receipt;

(ii) 5 days after posting; or

(iii) in the case of email, when the email is sent to that person's email address. For the purposes of this clause, an email is not sent to a person's email address if the sender:

(A) receives any communication to the effect that the email is undeliverable or undelivered to the recipient's email address; or

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(B) transmits or attempts to transmit any email that is a file size greater than that set out in Item 19C. Any notice given to the Contractor's representative (identified in a notice to the Superintendent under Clause 25) must be deemed to have been given to the Contractor.

A notice received after 5.00pm must be deemed to have been given and received on the next Business Day.

Any notice given to the Principal must also be copied simultaneously via email to the Superintendent.'

10. Amend clause 8 as follows:

a. In clause 8.3 delete the following sentence 'the number of copies stated in Annexure Part A or, if no number is stated, then 5 copies' and replace with '*one electronic copy*'.

b. Amend clause 8.4 as follows:

i. Replace the reference to '*5 copies*', with '*one printed copy and one electronic copy'.*

ii. Insert the following paragraph directly below the last paragraph in this clause:

'Further to the above where the Superintendent is required to respond as to the suitability of documents submitted for use in the Contract the Superintendent may alternatively respond by offering no objection to the Contractor proceeding subject to the requirements of the Contract and the Contractor will retain full risk and responsibility for work under the Contract and the compliance of the Works with the Contract.

The Contractor may be required by the Principal to provide some documents or data in a specified common format and / or hard copy for the efficient administration of the Contract and the cost of meeting this requirement for the following is deemed to be included in the Contract Sum to the extent that the context allows:

(a) design and documentation;

(b) design overviews;

(c) quality system documentation;

(d) Payment Claims;

(e) drawings and documents to be submitted to the Superintendent;

(f) As Built Documentation; and

(g) owners and operators manuals.

File data is to be provided in a version and format acceptable to the Principal. The Contractor must provide files saved in previous formats or nominated formats available from the current software when nominated by the Superintendent. Datum required is as advised or confirmed by the district Principal's Survey Office via the Superintendent.

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The Contractor must check all data files supplied under the Contract for viruses with a current commercial, industry standard virus checker prior to submission.'

c. In clause 8.6 delete the phrase '*without prior approval of the Principal, which approval shall not be unreasonably withheld*'.

11. Amend clause 9 as follows:

a. Replace clause 9.1 with the following:

'The Principal may, at any time, by notice in writing to the Contractor, assign all or any of its rights under the Contract to any person identified in the notice (assignee).

The Contractor acknowledges and agrees that from the date of any notice given by the Principal pursuant to this clause, any assignment by the Principal takes effect as if the assignee had been originally named as a party to the Contract in place of the Principal.

The Contractor must not, without the prior written approval of the Principal, and except on such terms and conditions as are determined in writing by the Principal, assign the Contract or any payment or other right, benefit or interest under or in respect of the Contract.'

b. Replace clause 9.2 with the following:

9.2 Subcontracting

(a) The Contractor must not without the written approval of the Superintendent, which approval must not be unreasonably withheld, subcontract any of the work under the Contract.

(b) Any request for approval pursuant to Clause 9.2(a) must be made by the Contractor to the Superintendent in the form set out in Annexure Part K.

(c) In addition to Clause 9.2(b) the Contractor must provide to the Superintendent such additional information which the Superintendent may reasonably request, including a copy of the proposed subcontract documents without prices.

(d) Within fourteen days after a request by the Contractor for approval, made in accordance with Clause 9.2(b) the Superintendent shall notify must approve the subcontract or advise the Contractor of its objections.

(e) The Contractor must not, without the written approval of the Superintendent, allow -

(i) a subcontractor to assign or subcontract any of the work under the Contract; or

(ii) the performance of any of the work under the Contract by any party (including without limitation, a sub subcontractor) other than the Contractor or an approved subcontractor.

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(f) When seeking approval pursuant to Clause 9.2(e) the Contractor must provide to the Superintendent such information and additional information which the Superintendent may reasonably request. The Superintendent may in its sole and unfettered discretion and without giving reasons reject any such request for approval by the Contractor.

(g) A request for approval to sub subcontract any of the work under the Contract pursuant to Clause 9.2(e) must be made by the Contractor to the Superintendent in the form set out in Annexure Part K.

(h) The provisions of this Clause 9.2 will not apply to work performed by Consultants.

c. Amend clause 9.3 as follows:

i. Delete '*Except where the Contract otherwise provides, the'* and replace with '*The'*.

ii. Replace the reference to '*shall be'* with '*will be vicariously'*.

d. In clause 9.4 replace the reference to '*not less than two'* with '*one or more'*.

12. Amend clause 10 as follows:

a. Insert the phrase '*or Consultant'* directly after the words '*Selected Subcontractor'.*

13. Replace clause 11 with the following:

11 Provisional Sums

'A provisional sum included in the Contract will not itself be payable by the Principal but where at the direction of the Superintendent the work or item to which the provisional sum relates is performed or supplied:

(a) where such work or item is stated to be priced as a fixed sum, provided the direction to perform or supply the work or item is given within 3 months after the Date of Acceptance of Tender (or such other validity period as may be stated in the Contract), the fixed sum amount will apply; and

(b) where paragraph (a) does not apply:

(i) by the Contractor, the work or item will be valued, at the Principal's sole and unfettered discretion either:

(A) under Clause 40.5; or

(B) using reasonable rates or prices as determined by the Superintendent;

(ii) by a subcontractor to the Contractor, the work or item will be valued in the same manner as set out in paragraph (b) which shall include the amount or percentage thereon for profit and attendance will be 10% (unless stated otherwise in Annexure Part A in the Contract Header; and

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(iii) *a Nominated Subcontractor pursuant to a prior contract made between the Principal and a Nominated Subcontractor, the benefit of which has been assigned to the Contractor, the Principal must pay the Contractor the amount stated in Annexure Part A in the Contract Header or the percentage for profit and attendance of 10% (unless stated otherwise in Annexure Part A in the Contract Header) of the amount payable by the Principal to the Nominated Subcontractor for the work or item, disregarding any damages payable by the Principal to the Nominated Subcontractor or vice versa.*

The amount payable to a subcontractor for materials or goods is to be taken to be the nett cost to the Contractor (disregarding any deduction of cash discount for prompt payment).'

14. Amend clause 12 as follows:

a. Amend clause 12.1 as follows:

A. Insert the words '*and substantially'* after the word '*materially*'.

B. Replace the first reference to '*the Contractor'* with the following phrase '*a competent, prudent, and experienced contractor*'.

C. Amend subclause (b) by replacing the full stop with a comma and including the following after the comma: '*but excluding Excepted Latent Conditions*.'

D. Insert at the end of clause 12.1 the following:

'*Excepted Latent Conditions are:*

(c) *those conditions identified in Annexure Part A in the Contract Header;*

(d) *any and all conditions relating to or affecting Temporary Works; and*

(e) *other conditions or risks for which a provisional sum has been allowed in the Contract*.'

b. Amend clause 12.2 by deleting the phrase '*If required by the Superintendent, the*' and replacing with '*The*'.

c. Replace clause 12.3 with the following:

12.3 Extension of Time and Cost

Delay which a competent, prudent and experienced contractor could not reasonably have anticipated at the time of tendering, caused by a Latent Condition may justify an extension of time under Clause 35.5. If a Latent Condition causes the Contractor to:

(a) *carry out more work;*

(b) *use more Constructional Plant; or*

(c) *incur more cost (including but not limited to extra costs for delay or disruption),*

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which a competent, prudent and experienced contractor could not have anticipated at the time the Contractor submitted its tender, a valuation must be made under Clause 40.5.

d. Amend clause 12.4 by replacing the reference to '*28*' with '*14*'.

15. Amend clause 13 as follows:

a. Amend clause 13.1 as follows:

i. Delete all references to *'patent, copyright, registered design, trade mark or name, or other protected right'* and replace the first reference with '*Intellectual Property Right'* and the second reference with *'Intellectual Property Right or Moral Right.'*

ii. Insert the following at the end of the clause:

'*Prior to the Contractor, including any servant or agent of the Contractor, commencing any work under the Contract, the Contractor must use its best endeavours to obtain from all such persons a consent to infringement of Moral Rights in a form approved by the Principal in respect of Moral Rights that may be possessed under the Copyright Act 1968 (Cth).*

This clause survives the termination or expiration of the Contract.'

b. Replace clause 13.2 as follows:

'***Alternative 1***

The Contractor grants, and will ensure is granted (and will do all things necessary to ensure the granting), to the Principal of an irrevocable, paid up, perpetual, transferrable, worldwide licence to use (and sub-licence others to use):

(a) the Contract Material, including the Design Documents; and

(b) the Intellectual Property Rights in the Contract Material,

from when the Contract Material is first used or prepared, for any purpose for which the work under the Contract is provided or any purpose associated with the Site, including the right to copy such Contract Material.

Such licence also includes completion of the work under the Contract, any subsequent repairs to, maintenance or servicing of (including the supply of replacement parts), or additions or alterations to, the Works.

Alternative 2

Title to and ownership of Intellectual Property Rights (including copyright) in all Contract Material will upon its creation vest in the Principal.

The Contractor will retain the Intellectual Property Rights in any original ideas, equipment, processes or systems first created outside the terms of the Contract and used in carrying out the work under the Contract. The Contractor must grant to the Principal an irrevocable, paid up, perpetual, transferrable, worldwide licence to use (and sub-licence others to use) such Intellectual Property Rights for any purpose for

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which the work under the Contract is provided or any purpose associated with the Site, including the right to copy such Contract Material, completion of the work under the Contract, any subsequent repairs to, maintenance or servicing of (including the supply of replacement parts), or additions or alterations to, the Works.

To the extent that Intellectual Property Rights in or relating to the Contract Material are not capable of being vested in the Principal because the Contractor does not own that Intellectual Property Right, the Contractor must ensure that the Principal is licensed to use that Intellectual Property Right on the terms in the preceding paragraph.

The Principal grants to the Contractor a paid up, non-exclusive, irrevocable licence to use the Intellectual Property Rights in Contract Material vested in the Principal pursuant to this clause for carrying out the work under the Contract.'

16. Amend clause 14 as follows:

    a. At the end of clause 14.1 insert the following:

    'The Contractor:

    must comply with all Policies and Plans, including (but not limited to) those specified in Annexure Part A in the Contract Header; and

    indemnifies the Principal against any claim, action, demand, loss, damage, cost or expense which may be brought against, or suffered or incurred by, the Principal as a result of or in connection with contravention of any Legislative Requirement by the Contractor, its officers, employees, agents or subcontractors.'

    b. In clause 14.2, at the end of subclause (iv), insert the following sentence: '*to a municipal, public or statutory authority (which includes local government)'*.

17. Amend clause 16 as follows:

    a. In clause 16.1 replace '*payment certificate'* with *'Payment Certificate.'*

    b. In clause 16.3, insert as a new paragraph at the end of the clause, *'but excluding any risk causing 'eligible terrorism loss' to which the Terrorism and Cyclone Insurance Act 2003 (Cth) applies*.'

18. Amend clause 17 as follows:

    a. In clause 17.1, at the end of subclause (iv), insert '*on the Site*'.

19. Amend clause 18 as follows:

    a. In clause 18(c), replace the word '*consequential*' with '*indirect'*.

    b. In paragraph after subclause (v), delete '*shall be in the joint names of the Principal and the Contractor*', and replace with '*must include both the Contractor and the Principal as a separate insured*,'.

    c. At the end of 'Alternate 1', insert the following paragraph: *'Any insurance that is the responsibility of the Contractor under the Contract must allow for the reimbursement of the value of any GST applicable to a claim.*'

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d. Replace the ‘Alternate 2’ text with the following:

‘On or before the Date of Acceptance of Tender, the Principal must effect a contract works policy of insurance in relation to the work under the Contract in the terms of the policy or proposed policy located at the ‘Council Suppliers’ section of the Principal’s internet website located at www.goldcoast.qld.gov.au (or such other site nominated by the Principal). The policy or proposed policy must include the name of the insurer. The Principal must maintain the policy while the Contractor has an interest therein and the Principal must pay all premiums.

The Contractor warrants that, by the date the Contract was entered into, it had obtained from the Principal sufficient details in respect of the Principal’s Contract Works Insurance policy.

The Principal reserves the right to alter the cover or terms and conditions provided in the contract works policy from time to time.

The Contractor agrees that all moneys payable in settlement of claims for damage to the works must be paid to the Principal who must pay to the Contractor such amounts as become due for repair or reinstatement of the works, unless the Principal authorises direct payment.

The insured under the policy must immediately follow the claim notification and other relevant procedures in the event of any incident that may result in a claim on the policy. Failure to do so may limit any rights under the policy. The Contractor must ensure that it follows the relevant procedures.’

20. Amend clause 19 as follows:

a. Delete the heading ‘*Alternative 1’* and replace the reference to *‘in the joint names of the Principal and the Contractor’* with *‘including both the Contractor and the Principal as separate insureds and.’*

b. Delete the text for ‘*Alternative 2’* including the heading.

c. Insert at the end of clause 19 the following:

Any insurance that is the responsibility of the Contractor under the Contract must allow for the reimbursement of the value of any GST applicable to a claim.

21. Amend clause 22 as follows:

a. Replace clause 22.1 with the following:

‘*Before the Contractor commences work under the Contract , upon the renewal or replacement of any policy of insurance (including due to a name change of the party) and whenever requested in writing by the other party, a party liable to effect or maintain insurance must produce evidence to the satisfaction and approval of the other party of the insurance effected and maintained.*

The effecting of insurance will not limit the liabilities or obligations of a party under other provisions of the Contract.

The date on which a Payment Claim may be made does not occur until the Contractor has provided proof of insurance in accordance with this Clause 22.1.’

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22. Amend clause 23 as follows:

a. Delete the start of clause 23 to subclause (c) and replace with the following:

'The Principal must ensure that at all times there is a Superintendent for the purposes of the Contract.

The Contractor agrees that:

(a) the Principal may appoint an employee of the Principal to be the Superintendent; and

(b) it is not entitled to object to, or bring any claim arising from, the Principal appointing an employee to be the Superintendent.

In the exercise of its functions under Clauses 35.5, 42.1, 42.3 and 42.6 of the Contract and in making cost assessments, the Principal must ensure that the Superintendent:

(c) acts honestly and fairly;

(d) acts within the time prescribed under the Contract or where no time is prescribed, within a reasonable time; and

(e) arrives at a reasonable measure or value of work, quantities or time.

The Superintendent may carry out and exercise the Principal's and the Superintendent's functions, discretion, rights, duties and powers and its functions under the Contract (other than those referred to in the paragraph above):

(f) as agent and representative of the Principal; and

(g) in accordance with instructions given to it by the Principal (acting in its sole and unfettered discretion unless the Contract expressly requires otherwise and in a manner consistent with the interests of the Principal).

23. At the end of the clause insert the following:

Despite any other clause in the Contract, if the Superintendent makes any directions under the Contract, that if complied with, the Contractor considers will or is likely to place the Contractor in breach of any Legislative Requirements, the Contractor must promptly (and before the direction is complied with), notify the Superintendent (such notice to set out the direction, the Legislative Requirements, the relevant breach and how the Contractor believes that the breach can be prevented or overcome without affecting its other obligations under the Contract). If the Contractor issues a notice pursuant to this Clause 23, the Contractor must not comply with that direction unless (and until) the Superintendent has confirmed that direction or given any other direction dealing with the matters notified.'

24. Amend clause 25 as follows:

a. Insert the following sentence at the end of the first paragraph in this clause: '*The Contractor must otherwise comply with the requirements in sections 43 and 43A of the QBCC Act (to the extent that it applies*).'

25. Amend clause 27 as follows:

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a. Replace clause 27.1 with the following:

'Within the time stated in the Notice of Access to Site, the Principal must give the Contractor access to the Site sufficient to enable the Contractor to commence and carry out the Contractor's Design Obligations in accordance with the Contract.

The Principal must, on or before the time stated in the Notice of Access to Site, give the Contractor possession of the Site or sufficient of the Site to enable the Contractor to commence further work under the Contract. If the Principal has not given the Contractor possession of the whole Site, the Principal must from time to time give the Contractor possession of such further parts of the Site as may be necessary to enable the Contractor to execute the work under the Contract in accordance with the requirements of the Contract. The Superintendent must notify the Contractor in writing of the date upon which the Site or any part thereof will be available.

Subject to Clause 44.7, delay by the Principal in giving possession of the Site will not be a breach of the Contract but any delay after the date notified in the Notice of Access to Site as being the date for possession of, or access to, the whole Site will be deemed an act or omission of the Principal for the purposes of Clause 35.5(d)(i).

Notwithstanding the provisions of this Clause 27.1, if the Contractor is in breach of Clause 22.1, the Principal may refuse to give the Contractor possession of the Site or any part of the Site until the Contractor has complied with the requirements of Clause 22.1.

Access to or possession of the Site will confer on the Contractor a right only to such use and control as is necessary to enable the Contractor to execute the work under the Contract.

Notwithstanding anything to the contrary, the Principal will not have any obligation to give access to the Site or give possession of the Site or give possession of sufficient of the Site to the Contractor until the later of the date when the Contractor has provided:

(a) evidence to the satisfaction and approval of the Superintendent of the insurance the Contractor is liable to effect or maintain under the Contract;

(b) the security to be provided by the Contractor pursuant to Clause 5.2;

(c) the Contractor's program pursuant to Clause 33.2; and

(d) the Contractor's Plans and the Site specific Safe Work Method Statements.'

b. In clause 27.2 where the phrase '*after reasonable notice*' is used, after the first reference, insert '*from the superintendent*' and after the second reference, insert '*(from either the Superintendent or the Principal)'*.

26. Amend clause 28 as follows:

a. Replace clause 28.1 with the following:

28.1 Setting Out

'*The Principal must supply to the Contractor in the Principal's Project Requirements or otherwise, sufficient information to identify any permanent survey mark ('PSM') or*

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other survey marks used in any surveys of the Site. The Contractor must confirm the location and level of the PSM or other survey mark identified by the Principal before use and ensure that any datum references are compatible with that required for the Works. Where the Principal's Project Requirements identifies State Government benchmarks or other identified marks as the reference to set out the Works then the Contractor is responsible for obtaining the necessary information from the relevant authority. This work must be undertaken by a professional surveyor.'

b. In clause 28.3 delete the last paragraph.

27. Amend clause 29 as follows:

a. In clause 29.2 insert the following at the end of the clause:

'In respect to constructional plant owned by others and used at the site and held by an agreement with the owner, the Contractor hereby agrees that in the event of imminent seizure of the plant by any person the Contractor agrees:

(a) to notify the Superintendent immediately in writing of the possibility of seizure, the reason for that seizure and of the name, address and contact numbers of the owner of the plant; and

(b) that the Principal may make payment of any overdue instalment or other sums owing in respect of the constructional plant and may recover the amount paid as a debt due and payable from the Contractor and, without limiting its rights, may deduct the amount paid by the Principal from any amount payable by the Principal under the Contract.'

28. Amend clause 30 as follows:

a. In clause 30.1 after the word 'workmanship', insert the following phrase: '*and comply with the National Construction Code performance requirements*'.

b. Amend clause 30.3 as follows:

A. Replace the second sentence with: '*The Superintendent may direct the Contractor to do any one or more of the following*:'.

B. At the end of subclause (c), after the word '*work*', insert the following '*(or any of these)*'.

C. Replace the reference from *'8 days'* with *'7 days'.*

D. Insert the following at the end of the clause:

'*Until the cost of such work has been incurred by the Principal, the Principal may deduct the estimated cost of such work from payments to the Contractor as a debt due and payable from the Contractor to the Principal*.'

c. In clause 30.6 replace '*progress payment*' with '*Payment Claim*'.

d. In clause 31.6 insert the following at the end of the clause:

'*In undertaking the work under the Contract, the Contractor will not be entitled to rely on any inspections or tests arranged or undertaken by the Principal or Superintendent*

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for their own purposes. The Contractor must undertake its own inspection and testing to meet the requirements of the Contract.'

29. Replace clause 32 with the following:

'32 Working Hours

The working hours and working days must be as specified in Annexure Part A in the Contract Header. These times must not be varied without the prior approval of the Superintendent except when, in the interests of safety of the work under the Contract or to protect life or property, the Contractor finds it necessary to carry out work outside the working hours or on days other than the working days specified in the Contract. In such cases the Contractor must notify the Superintendent in writing of the circumstances as early as possible.

Where the nature of the work required under the Contract interferes with services to the public, residents or businesses such that the work reasonably has to be undertaken outside working hours and the work is directed by the Superintendent to be undertaken at a time or times nominated by the Superintendent then the works are to be undertaken as and when directed. The Contractor will not be entitled to recover any amount associated with performing the work outside working hours. In so doing the Contractor must ensure that all Legislative Requirements are met prior to commencing the work under the Contract.'

30. Amend clause 33 as follows:

a. Replace clause 33.2 with the following:

'For the purposes of Clause 33, a 'Contractor's Program' is a statement in writing showing the major activities in the work under the Contract, the dates by which or the times within which key decisions are to be made and information is to be provided and the various stages or parts of the work under the Contract are to be executed or completed.

A Contractor's Program will not affect rights or obligations in Clause 33.1.

The Contractor must furnish to the Superintendent a Contractor's Program within 14 days after the Date of Acceptance of Tender.

The Contractor's Program must commence on the Date of Acceptance of Tender and must:

(a) incorporate the following criteria:

(i) work under the Contract must be broken down into activities sufficient specificity to enable accurate assessment of progress and the effects of delays to be made;

(ii) clearly defined critical paths must be shown;

(iii) relationships between activities must be sufficient in number to clearly indicate the intended sequence of work under the Contract and must show all dependencies dictated by constructability and the availability of labour or equipment resources;

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(iv) off-site procurement activities must be shown, including but not limited to:

(A) preparation, submission and approval of all relevant drawings; and

(B) order, manufacture and delivery periods for materials, plant and equipment;

(v) deadlines for selections or approvals by the Superintendent .or the Principal must be shown;

(vi) the lead times for the supply of all drawings and information relating to significant activities;

(vii) approval dates required from Government or public authorities;

(viii) turnaround times required for submission and examination of all relevant drawings;

(ix) supply times for any essential materials and major items of plant;

(x) all on and off Site activities;

(xi) testing requirements;

(xii) inspection of the work under the Contract, preparation of a defects list and rectification of defects prior to Practical Completion;

(xiii) quality assurance inspections and approvals prior to Practical Completion;

(xiv) dates for placing orders for standard components; and

(xv) any other requirements for the Contractor's Program set out in the Principal's Project Requirements;

(b) be revised by the Contractor at the Contractor's own cost and expense and submitted to the Superintendent at monthly intervals or whenever the Contractor falls 7 days behind the Contractor's Program;

(c) be in an electronic form approved by the Superintendent and issued in hard copy to the Superintendent;

(d) be in such detail so as to advise the Superintendent of the details specified in this Clause 33.2;

(e) as a minimum indicate early start and finish dates;

(f) show the dates by which, or the times within which the milestones set out in the Contract are to be carried out or completed;

(g) incorporate a separate program for each Separable Portion;

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(h) be in sufficient detail to enable the Superintendent to integrate the work of others;

(i) clearly demonstrate the Contractor's ability to meet the Dates for Practical Completion; and

(j) indicate all resources, including human resources to be employed on the Contract throughout its duration.

The Contractor must make available any documentation reasonably requested by the Superintendent relating to the Contractor's Program or the Contractor's progress of the work under the Contract.

The Contractor must not depart, without reasonable cause, from:

(k) a Contractor's Program included in the Contract; or

(l) a Contractor's Program furnished to the Superintendent.

The furnishing of a Contractor's Program or of a further Contractor's Program will not relieve the Contractor of any obligations under the Contract including the obligation not to depart, without reasonable cause, from an earlier Contractor's Program.

Despite any other provision of this clause:

(m) the Contractor must provide, at least monthly (in the week immediately before the submission of that month's Payment Claim), a status program to the Superintendent (in a form acceptable to the Superintendent) which will not be subject to approval and may be used for any purpose (including for monitoring the Contractor's progress of work under the Contract) ('Status Program');

(n) any Contractor's Program prepared or provided by the Contractor will not be used as a Contractor's Program for the purposes of this clause until it has been approved by the Superintendent;

(o) the Contractor will not be entitled to any claim arising from a direction of the Superintendent under this clause unless the Contractor has notified the Superintendent that the direction will result in the Contractor incurring more cost (together with an estimate of that cost) within 7 days after receipt by the Contractor of the direction and before the Contractor gives effect to the direction;

(p) the power of the Superintendent to require the Contractor to provide a Contractor's Program includes a power to require the provision of an updated Contractor's Program whenever the Superintendent requires after a change in the Date for Practical Completion or any circumstances affecting the progress of work under the Contract;

(q) the Contractor must provide a Contractor's Program and any updated Contractor's Program at its own cost and expense; and

(r) the power of the Superintendent to direct at what time the various stages or portions of work under the Contract will be carried out includes a power to accelerate the progress of work under the Contract and to bring forward the

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Date for Practical Completion by a reasonable period having regard to the Superintendent's direction.

The Contractor acknowledges that, notwithstanding any provision to the contrary in the Contract:

(s) the Contract Sum includes an amount equal to 5% of the Contract Sum that represents a milestone payment for the provision of each monthly revised Contractor's Program in accordance with Clause 33.2 up to the Date of Practical Completion;

(t) in respect of each Payment Claim up to the Date of Practical Completion, an amount (being on account of the milestone payment) equal to 5% of the value of work under the Contract done to the relevant date set out in Annexure Part A in the Contract Header (less any amounts paid in respect of any previous Payment Claim on account of the milestone payment) is not payable, and the Contractor will not be entitled to claim that amount in the relevant Payment Claim, unless the Contractor has provided the monthly revised Contractor's Program in accordance with Clause 33.2 (which must not be more than seven days old at the date of the Payment Claim) in the month in which the relevant Payment Claim was made and before the relevant Payment Claim is made;

(u) if a Contractor's Program is received after the Payment Claim is received, the relevant amount set out in subclause (t) is only entitled to be claimed in next Payment Claim; and

(v) any amounts not payable pursuant to subclause (t) will be entitled to be claimed in the first Payment Claim after the Date of Practical Completion being achieved.'

31. Amend clause 35 as follows:

a. Amend clause 35.3 as follows:

i. Insert '36' as part of the list of clauses after the reference to '35'.

ii. After the phrase '*liquidated damages*,' insert '*delay costs*'.

b. Replace clause 35.5 with the following:

'When it becomes evident to the Contractor that anything, including an act or omission of the Principal, the Superintendent or the Principal's employees, consultants, other contractors or agents, may delay the work under the Contract, the Contractor must promptly notify the Superintendent in writing with details of the possible delay and the cause.

When it becomes evident to the Principal that anything which the Principal is obliged to do or provide under the Contract may be delayed, the Principal must promptly give notice to the Superintendent who must promptly notify the Contractor in writing of the extent of the likely delay.

If the Contractor is or will be delayed in reaching Practical Completion by a cause described in the next paragraph and within 7 days after the delay occurs, the Contractor gives the Superintendent a written claim for an extension of time for Practical Completion setting out :

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(a) the facts on which the claim is based; and

(b) the period of extension claimed,

subject to the conditions precedent and any other provision affecting the Contractor's entitlement, the Contractor will be entitled to an extension of time for Practical Completion.

The causes are:

(c) any of the following occurring on or before the Date for Practical Completion and which are beyond the reasonable control of the Contractor;

(i) statewide or nationwide industrial conditions[*]*; or*

(ii) inclement weather conditions, being abnormal climatic conditions (and provided paragraphs (A) and (B) are satisfied):

(A) (including winds of greater than 90 km/hour, swell greater than 0.65 metres or winds greater than 12 metres/second that affect cranes) by virtue of which it is either not reasonable or not safe for plant, equipment and/or workers exposed thereto to continue working whilst the inclement weather conditions prevail; and

(B) which differ from the conditions stated in the Contract (including the conditions of approvals imposed by the regulatory authorities or, in the absence of such a statement covering all weather conditions, inclement weather conditions which differ materially and substantially from those conditions which could have been anticipated by a prudent, experienced and competent contractor; and

(d) any of the following other causes whether occurring before, on or after the Date for Practical Completion:

(i) delay or disruption caused by:

(A) the Principal;

(B) the Superintendent;

(C) an employee, consultant, other contractor or agent of the Principal or Superintendent;

(ii) a Latent Condition;

(iii) a variation;

(iv) a change in Legislative Requirements meeting the requirements in clause 14.2;

[*] Note: Clauses 35.5 (c)(i) and 35.5(c)(ii) prefixed by '†' are optional and Annexure Part A in the Contract Header should be completed appropriately. If the Annexure Part A options are not completed, the particular Clause will not apply.

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(v) a direction by a municipal, public or statutory authority but not where the direction arose from the failure of the Contractor to comply with a Legislative Requirement;

(vi) delay by a municipal, public or statutory authority not caused by the Contractor;

(vii) a claim referred to in Clause 17.1(f);

(viii) a breach of the Contract by the Principal;

(ix) another cause which is expressly stated in the Contract to be a cause for an extension of time for Practical Completion.

Where more than one event causes overlapping delays and the cause of at least one of those events, but not all of them, is not a cause of delay listed in Clause 35.5(c) or 35.5(d), then to the extent that the delays are overlapping, the Contractor will not be entitled to an extension of time for Practical Completion.

In determining whether the Contractor is or will be delayed in reaching Practical Completion regard must not be had to:

(e) whether the Contractor can reach Practical Completion by the Date for Practical Completion without an extension of time; or

(f) whether the Contractor can, by committing extra resources or incurring extra expenditure, make up the time lost.

It is a condition precedent to the Contractor's entitlement to claim an extension of time that:

(g) the Contractor complies with the notice requirements set out in this clause;

(h) the cause of delay is not within the reasonable control of the Contractor or any subcontractor;

(i) the delay was not caused or contributed to by the Contractor failing to comply with its obligations under the Contract;

(j) the cause of delay affects the Contractor's critical path for completion of the Works; and

(k) the cause of delay or the delay is not specified in the Contract as being the risk of the Contractor or for which the Contractor is not entitled to any claim.

If the Contractor is entitled to an extension of time for Practical Completion the Superintendent must, within 28 days of receipt of the notice of the number of days extension claimed, grant a reasonable extension of time. If within the 28 days the Superintendent does not grant the full extension of time claimed, the Superintendent must before the expiration of the 28 days give the Contractor notice in writing of the reason.

In determining a reasonable extension of time for an event causing delay, the Superintendent must have regard to whether the Contractor has taken all reasonable

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steps to preclude the occurrence of the cause and minimise the consequences of the delay.

A delay by the Principal or the failure of the Superintendent to grant a reasonable extension of time or to grant an extension of time within 28 days, will not cause the Date for Practical Completion to be set at large but nothing in this paragraph will prejudice any right of the Contractor to damages.'

a. Amend clause 35.6 as follows:

i. After the first paragraph, insert the following:

'The Superintendent when issuing a certificate pursuant to Clause 42.1, and the Principal when exercising any set-off rights, may include a provisional assessment of the amount then provisionally due by way of liquidated damages.'

ii. After the last paragraph, insert the following:

'If this Clause 35.6 (or any part thereof) is found for any reason to be void, invalid or otherwise inoperative so as to disentitle the Principal from claiming liquidated damages, the Principal is entitled to claim against the Contractor damages at law for the Contractor's failure to achieve Practical Completion by the Date for Practical Completion.'

32. Replace clause 36 with the following:

'For every day the subject of an extension of time for a Compensable Cause for which the Contractor gives the Superintendent a claim for delay costs pursuant to Clause 46, amounts certified by the Superintendent under Clause 46.4 will be due and payable to the Contractor.

The Contractor will not be entitled to claim any delay costs which:

(a) could reasonably have been avoided by the Contractor;

(b) exceed the Delay Rates; or

(c) includes any amounts, or costs suffered or incurred by the Contractor, arising out of or in connection with any disruption or loss of productivity.

Except to the extent expressly set out in this Clause 36, the Contractor will not be entitled to claim any costs, expenses, damages or other amounts resulting from any delay or disruption arising from any cause (including without limitation breach by the Principal).

The Principal will not be obliged to pay any costs under this Clause 36 which have already been included in the value of a variation or claim for any other payment under the Contract; or including, but not limited to, costs of suspension in accordance with Clause 34.4 and the valuation of any variations.'

33. Amend clause 37 as follows:

a. In the fourth paragraph, replace '*shall be a debt due'* with '*will be a debt due from the Contractor to the Principal. Until the cost of the work of rectification has been incurred by the Principal, the Principal may deduct the estimated cost of such work from payments to the Contractor as a debt due and payable'*

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34. Amend clause 40 as follows:

a. Amend clause 40.1 by deleting the following phrase '*Except where otherwise provided in the Contract, the Superintendent shall not direct a variation after the date'* and replace with the following:

'Except where the Contractor has provided an offer under Clause 40.2, within a reasonable time the Contractor must provide to the Superintendent a price, ascertained in accordance with Clause 40.5 and supported with measurements, rates and evidence of the work and cost (including where applicable subcontractors' and suppliers' measurements, rates and evidence of the work and cost) for the work the subject of a variation issued under this Clause 40.1. The Superintendent and Contractor must endeavour to agree upon a price for the variation and any written agreement reached will be binding upon the parties. If the Superintendent and Contractor fail to agree in writing upon a price for the variation or if the Contractor fails to provide a price to the Superintendent within a reasonable time, the variation must be valued by the Superintendent under Clause 40.5.

Notwithstanding anything to the contrary in the Contract:

(f) the Principal will only be liable to the Contractor for an amount calculated under Clause 40.5 or for an extension of time for Practical Completion. for a variation where either:

(i) the direction to perform the variation given by the Superintendent is in writing and expressly states that the direction constitutes a variation and identifies the work the subject of the direction; or

(ii) before performing the variation and in any event within seven days of receiving the direction to perform the variation, the Contractor has given the Superintendent a notice in writing which identifies:

(A) the date the direction was given;

(B) whether the direction was given orally or in writing;

(C) the substance of the direction (if it was in writing a copy should be attached);

(D) the approximate cost of the variation including a detailed breakdown calculated in accordance with Clause 40.5; and

(E) whether a claim will be made for an extension of time as a consequence of the variation and if so, an estimate of the period; and

(g) except where the Contractor is entitled to make a claim under this Clause, the Contractor will have no entitlement to:

(i) any adjustment to the Contract Sum or valuation under Clause 40.5;

(ii) an extension of time;

(iii) a declaration to the effect that time is at large; or

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(iv) recover any loss, cost, damage or expense of any kind arising:

(A) under the Contract;

(B) out of or in connection with the work under the Contract or the performance of the work under the Contract (including on a quantum merit).'

b. Amend clause 40.2 as follows:

i. After the first reference of '*Superintendent*', insert '*within 2 days'*.

ii. After the second reference of '*the Contractor shall*', insert '*in writing*'.

iii. Delete subclause (b) and the last paragraph of the clause and replace with:

'*(b) provide to the Superintendent a price, ascertained in accordance with Clauses 40.5 and supported with measurements, rates and evidence of cost (including where applicable subcontractors' and suppliers' measurements, rates and evidence of cost) for carrying out the proposed variation.*

The Contractor's written response to Clauses 40.2 (a) and (b) will constitute the Contractor's offer under this Clause 40.2.

The Superintendent may, in writing and within a reasonable time, accept the Contractor's offer and issue a direction under Clause 40.1 to carry out the proposed variation, in which case the value of the variation and any extension of time as a result of the direction under Clause 40.1 must be in accordance with the accepted offer, which will be binding upon the parties.

The Superintendent may nevertheless issue a direction under Clause 40.1 to carry out the proposed variation, and the variation must be valued by the Superintendent under Clause 40.5.'

c. Replace clause 40.5 with the following:

'Where the Contract provides that a valuation must be made under this Clause 40.5, the Principal must pay or allow the Contractor or the Contractor must pay or allow the Principal, as the case may require, an amount ascertained by the Superintendent as follows:

(a) an amount agreed between the parties;

(b) to the extent that Clause 40.5(a) does not apply and the Contract prescribes specific rates or prices to be applied in determining the value, those rates or prices must be used;

(c) to the extent that neither Clause 40.5(a) nor 40.5(b) applies, the rates or prices in a Schedule of Rates must be used to the extent that it is reasonable to use them;

(d) to the extent that neither Clause 40.5(a), 40.5(b) nor 40.5(c) applies reasonable rates or prices must be used, which must include a reasonable

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amount for all profit and on-site and off-site overheads (including supervision, preliminaries and attendances);

(e) to the extent that neither Clause 40.5(a), 40.5(b), 40.5(c) nor 40.5(d) applies, as Daywork valued in accordance with Clause 41; and

(f) if the valuation is of an increase or decrease in a fee or charge or is a new fee or charge under Clause 14.2, the value must be the actual increase or decrease or the actual amount of the new fee or charge without regard to overheads or profit.

The parties acknowledge that the Superintendent may request the Contractor to provide supporting evidence of the work, goods, materials or services and associated costs which the Superintendent may reasonably require prior to determining a valuation under Clauses 40.5(a) to 40.5(e) above.

For the purposes of a valuation to be made in accordance with Clause 40.5(b), 40.5(c), 40.5(d) or 40.5(e):

(g) in determining the deduction to be made for work which is taken out of the Contract, the deduction must include a reasonable amount for profit and overheads;

(h) if the valuation relates to extra costs incurred by the Contractor for delay, the costs must be assessed in accordance with the requirements of Clause 36; and

(i) if Clause 11(b) applies, the percentage referred to in Clause 11(b) must be used for valuing the Contractor's profit and attendance.

The Superintendent may, in respect of a variation directed under Clause 40.1 (other than for the Contractor's convenience), in its sole and unfettered discretion and without any obligation to do so, allow the Contractor reasonable cost of preparing measurements, rates and evidence of cost that has been incurred over and above the reasonable overhead cost.

For the purposes of this clause, amounts to be allowed for profit and on-site and off-site overheads (including supervision, preliminaries and attendances) must be calculated in accordance with, and must not exceed the respective rates for each of profit and on-site and off-site overhead (including supervision, preliminaries and attendances) specified in Annexure Part A in the Contract Header.

For the avoidance of doubt, the Contractor may only Claim in connection with a valuation which is to be made under this Clause 40.5, subject to and in accordance with this Contract (including Clauses 40.1 and 46 if applicable), as part of a Payment Claim.'

35. Amend clause 41 as follows:

a. At the end of subclause (f), insert the following:

'The charge to apply to daywork to cover overheads, administrative costs, site supervision, establishment costs, attendance and profit is 10 per cent or where any of the above items covered by this charge are considered by the Superintendent on

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examination of the amount to be reasonably included in the rates for Daywork, then a reasonable charge determined by the Superintendent.'

36. Amend clause 42 as follows:

a. Replace clause 42.1 with the following:

The Contractor agrees that:

(a) at the times for Payment Claims stated in Annexure Part A in the Contract Header; and

(b) at the time prescribed by Clause 42.5 (which time is the only date on which a Payment Claim may be made by the Contractor after the Practical Completion Payment Claim under paragraph (a) and which Payment Claim under this paragraph (b) will cover the Contractor's entitlement to payment, if any, for all of the work under the Contract undertaken after Practical Completion),

the Contractor must deliver to the Superintendent Payment Claims in a form required by, or approved by, the Superintendent supported by evidence of the amount due to the Contractor and such information as the Superintendent may reasonably require. Payment Claims must include the value of work carried out by the Contractor in the performance of the Contract to that time together with all amounts then otherwise due to the Contractor arising out of the Contract.

If the Contractor submits a Payment Claim before the time for lodgement of that Payment Claim, such early lodgment will not require the Superintendent to issue the Payment Certificate in respect of that Payment Claim earlier than would have been the case had the Contractor submitted the Payment Claim in accordance with the Contract.

Within the Response Period of receipt of valid Payment Claim, the Superintendent shall assess the claim and must issue to the Principal and to the Contractor a Payment Certificate stating the amount of the payment which, in the Superintendent's opinion, is to be made by the Principal to the Contractor or by the Contractor to the Principal. The Superintendent must set out in the certificate the calculations employed to arrive at the amount and, if the amount is more or less than the amount claimed by the Contractor, the reasons for the difference. The Superintendent must also set out, as applicable, in any Payment Certificate issued pursuant to Clause 42, the allowances made for:

(c) the value of work carried out by the Contractor in the performance of the Contract to the date of the claim;

(d) amounts otherwise due from::

(i) the Principal to the Contractor; and

(ii) the Contractor to the Principal;

(e) amounts assessed under Clause 46.4 and not duly disputed;

(f) amounts paid previously under the Contract;

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(g) amounts previously deducted for retention moneys pursuant to Annexure Part A in the Contract Header; and

(h) retention moneys to be deducted pursuant to Annexure Part A in the Contract Header,

arising out of the Contract resulting in the balance due to the Contractor or the Principal, as the case may be.

If the Contractor does not make a Payment Claim in accordance with the Contract, or for any other reason and at any other time in the Superintendent's sole and unfettered discretion (and without being under any obligation to do so), the Superintendent may issue a Payment Certificate.

Subject to Clause 48F, the Principal must, within 15 Business Days after the Superintendent receives the Payment Claim, pay to the Contractor the balance of the Payment Certificate after deducting retention moneys and setting off such of the Payment Certificate as the Principal elects to set off. If that setting off produces a negative balance, the Contractor must pay that balance to the Principal within 5 Business Days of receiving written notice thereof.

Subject to the provisions of the Contract, within 15 Business Days of receipt by the Superintendent of a valid Payment Claim or Final Payment Claim, the Principal must pay to the Contractor or the Contractor must (as a debt due and payable) pay to the Principal, as the case may be, an amount not less than the amount shown in such certificate as due to the Contractor or to the Principal, as the case may be, or if no Payment Certificate has been issued, the Principal must pay the amount of the Contractor's Payment Claim.

A payment made pursuant to this Clause 42.1 will not prejudice the right of either party to dispute under Clause 47 whether the amount so paid is the amount properly due and payable and on determination (whether under Clause 47 or as otherwise agreed) of the amount so properly due and payable, the Principal or the Contractor, as the case may be, will be liable to pay the difference between the amount of such payment and the amount so properly due and payable.

Payment of moneys will not be evidence of the value of work or an admission of liability or evidence that work has been executed satisfactorily but will be a payment on account only, except as provided under Clause 42.6. Nothing in this Contract will oblige the Principal to pay for work that is not in accordance with the Contract.'

b. Amend clause 42.2 as follows:

i. In the first sentence, after '*The*', insert the following '*Contractor will be entitled to claim, and the*'.

ii. In the last paragraph, after the phrase '*Except as provided in the Contract, the'*, insert '*Contractor will not be entitled to claim, and the'*.

c. Amend clause 42.3 as follows:

i. Change all references of '*14 days*', to *'28 days*'.

ii. After the last paragraph, insert the following:

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'Upon Practical Completion, the Contractor agrees that, except:

(a) in respect of any amounts claimed in any Payment Claim given under Clause 42.1 (subject to compliance with Clauses 46 and 47);

(b) in respect of any part of the Contract Sum claimed in any Payment Claim given under Clause 42.1 immediately after Practical Completion;

(c) in respect of unresolved claims the subject of a notice under Clauses 46 and 47 or any other clause of this Contract expressly permitting the Contractor to notify of a claim (subject to such notices being served no later than 10 Business Days after the date on which the Contractor receives the Certificate of Practical Completion); and

(d) in respect of the release of any unconditional undertakings in accordance with Clause 5.8,

the Contractor:

(e) has been paid all amounts due and payable by the Principal or to which the Contractor is entitled:

(i) at the Date of Practical Completion under or in connection with this Contract; or

(ii) in connection with the Works or the work under the Contractor; and

(f) will not be entitled to any claim:

(i) in respect of any direction of the Principal or the Superintendent or any other act, omission, fact, matter or thing (including breach of this Contract by the Principal) under this Contract or arising out of, or in any way in connection with, this Contract, the Works and the work under the Contract; and

(ii) arising or occurring before the Date of Practical Completion.'

d. In clause 42.4 replace reference to '*payment certificate'* with '*Payment Certificate*'.

e. Amend clause 42.5 as follows:

i. Replace the first paragraph with the following:

'At the time for the Final Payment Claim stated in Annexure Part A in the Contract Header, the Contractor must lodge with the Superintendent a final payment claim and endorse it 'Final Payment Claim'. The claims status as the Final Payment Claim is subject to the Payment Claim meeting the contractual prerequisites required for a Final Payment Claim.

ii. In the second paragraph replace reference to '*payment certificate'* with '*Payment Certificate*'.

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f. Amend clause 42.6 as follows:

i. Replace reference to '*14 days'* with '*the Response Period'.*

ii. Before the first reference to '*Final Payment Claim'* insert '*valid'.*

iii. Replace *'final payment certificate endorsed 'Final Certificate''* with *'final Payment Certificate endorsed 'Final Certificate' or give the Contractor in writing the reasons for not issuing the certificate'.*

iv. Delete the last paragraph and replace with the following:

'Subject to the Principal's rights to set-off pursuant to Clause 42.8 and to have recourse to security and retention pursuant to Clause 5.6, within 28 days of the issuance of a Final Certificate which certifies a balance owing by the Principal to the Contractor, and later of:

(d) the finalisation of any dispute that has been commenced in accordance with Clause 47; and

(e) the finalisation of any claim, adjudication or proceeding commenced pursuant to or in connection with the Security of Payment Act, including proceedings commenced by the Principal to recover an amount the subject of a Payment Claim pursuant to the Security of Payment Act,

the Principal must release to the Contractor any, retention moneys or security then held by the Principal.

Upon the Final Certificate being issued, the Contractor agrees that, except:

(f) in respect of any amounts claimed in any Payment Claim given under Clause 42.1 prior to the issue of the Final Certificate (subject to compliance with Clauses 46 and 47);

(g) in respect of unresolved claims the subject of a notice under Clauses 46 and 47 or any clause of this Contract expressly permitting the Contractor to notify of a claim (subject to such notices being served no later than 10 Business Days after the date on which the Contractor receives the Final Certificate); and

(h) in respect of the release of any unconditional undertakings in accordance with Clause 5.9,

the Contractor:

(i) has been paid all amounts due and payable by the Principal or to which the Contractor is entitled to claim under or in connection with this Contract, the Work or the work under the Contract; and

(j) will not be entitled to any claim:

(i) in respect of any direction of the Principal or the Superintendent or any other act, omission, fact, matter or thing (including breach of this Contract by the Principal) under

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this Contract or arising out of, or in any way in connection with, this Contract, the Work or the work under the Contract; and

(ii) arising or occurring before the issue of the Final Certificate.'

g. In clause 42.7 replace *'18 percent'* with *'7 percent'*

h. Replace clause 42.8 with the following:

'42.8 General Right of Set Off

Without limiting the Principal's rights under any other provision in the Contract and notwithstanding the provisions of or the issue of a certificate by the Superintendent under Clause 42.1 and 44.6, the Principal may deduct from any moneys due to the Contractor any sum which is bona fide claimed as being payable by the Contractor to the Principal whether or not the Principal's right to payment arises by way of damages debt, restitution or otherwise and whether or not the factual basis giving rise to the Principal's right to payment arises out of this Contract, any other contract, or is independent of any contract. If the moneys payable to the Contractor are insufficient to discharge the liability of the Contractor to pay such sum to the Principal, the Principal may have recourse to retention moneys (whether or not these are held by the Principal in alternative form pursuant to Clause 42.1), and if they are insufficient, to security provided under Clause 5.2 of the Contract. Nothing in this clause will affect the right of the Principal to recover from the Contractor the whole of such moneys or any balance that remains owing.'

37. Amend clause 43 as follows:

a. Replace clause 43.2 with the following:

'43.2 Prior to the making of a Payment Claim

The date on which a Payment Claim may be made does not occur until the Contractor has provided the documents required under this Clause 43.2.

(a) The Contractor must deliver to the Superintendent an original statutory declaration in the form set out in Annexure Part F completed by the Contractor, or where the Contractor is a corporation, by the representative of the Contractor who is in a position to know the facts attested to, and, if requested in writing, reasonable supporting documentary evidence thereof.

(b) If previously requested by the Superintendent, the Contractor must deliver to the Superintendent an original statutory declaration in the form set out in Annexure Part M by any subcontractor, or where the subcontractor is a corporation, by a representative of the subcontractor who is in a position to know the facts attested to -

(i) that all workers who have been engaged by a subcontractor of the Contractor have been paid, in accordance with the relevant award or industrial instrument, all moneys due and payable to them up to the date of submission by the Contractor of a Payment Claim in respect of their engagement on the work under the Contract;

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(ii) that all subcontractors of the subcontractor have been paid all that is due and payable to such subcontractors up to the date of submission by the Contractor of a Payment Claim in respect of the work under the Contract, and, if requested in writing, reasonable supporting documentary evidence thereof; and

(iii) the Contractor is solvent and is not subject to an act of insolvency as defined by Clause 44.11.

(c) The Contractor acknowledges that the Principal may release to a Subcontractor details of payments in percentage terms made by the Principal to the Contractor in respect of the works or any part thereof unless the Contractor shows reasonable grounds why such details should not be released or satisfies the Principal that all payments due and payable to the subcontractor by the Contractor have been paid.

(d) If a worker or subcontractor obtains a court order in respect of moneys unpaid and the subject of a statutory declaration under Clause 43.2, and produces to the Principal the court order and a statutory declaration that it remains unpaid, the Principal may pay the amount of the order, and costs included in the order, to the worker or subcontractor and the amount paid will be a debt due from the Contractor to the Principal.

(e) After the making of a sequestration order or a winding up order in respect of the Contractor, the Principal must not make any payment to a worker or Subcontractor without the concurrence of the official receiver or trustee of the estate of the bankrupt or the liquidator as the case may be.

b. In clause 43.3, amend subclause (a) by deleting the following: *'within 5 days of the direction by the Superintendent pursuant to Clause 43.*1,'.

c. In clause 43.4 delete all references to the *'43.1 or'*.

38. Amend clause 44 as follows:

a. Amend clause 44.2 as follows:

i. Delete the following phrase in the first paragraph: '*and the Principal considers that damages may not be an adequate remedy'*.

ii. Delete the 'and' at the end of subclause (g).

iii. Delete subclause (h).

iv. Insert the following subclauses after subclause (g):

'(h) failing to comply in any respect with the requirements of Clause 9.2;

(i) failing to comply with any requirement or request made pursuant to the requirements of Clause 43;

(j) failing to provide a statutory declaration required under the Contract;

(k) providing a statutory declaration pursuant to the Contract which is false, misleading or deceptive in any respect;

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(l) failing to lodge a Deed of Guarantee Undertaking and Substitution (including a new Deed of Guarantee Undertaking and Substitution following a Change of Control, if applicable) in breach of Clause 5.11;

(m) failing to maintain all necessary licences that are required for the Contractor to perform all of its obligations under the Contract;

(n) failing to comply in any respect with the requirements of Clause 29.3A;

(o) failing to comply with or breaching in any respect the requirements of Clause 6.2A;

(p) failing to comply with or breaching in any respect the requirements of Clause 48A; or

(q) failing to comply with or breaching in any respect the requirements of Clause 48H (if applicable).'

b. In clause 44.3, amend subclause (d) by deleting the following: *'(which time shall not be less than 7 clear days after the notice is given to the Contractor)'*.

c. Replace clause 44.4 after paragraph (b) with the following:

'Notwithstanding any other provision of this Contract, upon the giving of a notice under Clause 44.2:

(c) the Contractor will not be entitled to any further payment in respect of the Work taken out of the hands of the Contractor unless payment becomes due to the Contractor under Clause 44.6; and

(d) the Principal may suspend payments to the Contractor,

until the earlier of:

(e) the date upon which the Contractor shows reasonable cause;

(f) the date upon which the Principal takes action under Clause 44.4(a) or (b); or

(g) the date which is 7 days after the last day for showing cause in the notice under Clause 44.2.

If the Principal exercises the right under Clause 44.4(a), the Contractor will not be entitled to any further payment in respect of the work taken out of the hands of the Contractor unless a payment becomes due to the Contractor under Clause 44.6.'

d. Replace clause 44.5 with the following:

'If the Principal takes work out of the hands of the Contractor under Clause 44.4(a), the Principal must complete that work and the Principal may without payment of compensation take possession of the Records and such of the Constructional Plant and other things on or in the vicinity of the Site or on or in the vicinity of any land in addition to the site procured by the Contractor pursuant to Clause 27.5A as are owned

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by the Contractor and are reasonably required by the Principal to facilitate completion of the work.

If the Principal takes possession of Constructional Plant, or other things, the Principal must maintain the Constructional Plant, and subject to Clause 44.6, on completion of the work, the Principal must return to the Contractor the Constructional Plant and any things taken under this clause which are surplus.'

e. Amend clause 44.7 as follows:

i. In the second paragraph, replace '*include but are not limited to'* with '*of the Principal are:'*.

ii. Delete subclauses (a) and (b).

iii. Amend subclause (d) by replacing '*14 days'* with '*28 days'*.

f. Replace clause 44.11 with the following:

'If:

(a) the Contractor makes a statement, or conducts itself in a manner, from which it may reasonably be deduced that the person is insolvent;

(b) the Contractor stops or suspends payment of all or a class of its debts, or threatens to stop or suspend payment of all or a class of its debts;

(c) the Contractor is seeking, or makes a statement, or conducts itself in a manner, from which it may reasonably be deduced that it is seeking, to take advantage of the safe harbour against insolvent trading available under Division 3, Part 5.7B of the Corporations Act 2001 (Cth);

(d) the Contractor informs the other party in writing or creditors generally that the Contractor is insolvent or it is financially unable to proceed with the Contract;

(e) execution is levied against the Contractor by a creditor;

(f) the Contractor, being an individual person , or a partnership including an individual person, and that person;

(i) commits an act of bankruptcy;

(ii) has a bankruptcy petition presented against it;

(iii) presents a debtor's petition or a declaration of an intention to present a debtor's petition to the official receiver;

(iv) is made bankrupt;

(v) under Part IX of the Bankruptcy Act 1966 (Cth):

(A) makes a written proposal for a debt agreement; and

(B) the proposal becomes a debt agreement; or

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(vi) makes a proposal for a deed of assignment, deed of arrangement or a composition; or

(vii) under Part X of the Bankruptcy Act 1966 (Cth):

(A) has a deed of assignment or deed of arrangement made,;

(B) accepts a composition;

(C) is required to present a debtor's petition; or

(D) has a sequestration order made; or

(g) the Contractor is a corporation and:

(i) a notice is given of a meeting of creditors with a view to the corporation entering a deed of company arrangement;

(ii) the Contractor enters a deed of company arrangement with creditors;

(iii) a controller or administrator is appointed;

(iv) a meeting of creditors is called with a view to:

(A) entering a scheme of arrangement or composition with creditors; or

(B) appointing a controller or administrator to the party;

(v) a receiver of the property or part of the property of the Contractor is appointed;

(vi) the Contractor takes or commences or has taken, commenced or instituted against it any process, action or proceeding, whether voluntary or compulsory, which has an object or may result in the winding up of the company, other than a voluntary winding up by members for the purpose of reconstruction or amalgamation, or a controller or administrator is appointed or enters into a compromise or other arrangement with its creditors or a receiver or receiver and manager is appointed to carry on the Contractor's business for the benefit of the creditors or any of them;

(vii) a winding up order is made;

(viii) execution is levied by creditors, debenture holders or trustees or under a floating charge; or

(ix) any event analogous to any of the above events occurs,

then the Principal may, without giving a notice to show cause, exercise the rights under Clause 44.4(a) or 44.4(b).

The rights given by this Clause 44.11 are in addition to any other rights and may be exercised notwithstanding that there has been no breach of Contract.'

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39. Amend clause 45 as follows:

a. Replace '*payment certificate'* with '*Payment Certificate'*.

b. Replace '*payment claim'* with '*Payment Claim'*.

40. Amend clause 46 as follows:

a. Amend clause 46.1 as follows:

i. At the start of the first paragraph insert '*Subject to Clause 46.2'.*

ii. Replace the second paragraph with the following:

'Subject to Clause 46.2(b), this Clause 46.1 and Clauses 46.3, 46.4 and 46.5 will:

(a) apply to:

(i) anything in respect of which the Contractor is otherwise given an express entitlement under the Contract Header (whether subject to assessment, certification or valuation by the Superintendent or otherwise);

(ii) anything in respect of which the Contract expressly provides that:

(A) costs or other amounts are to be paid or allowed to the Contractor; or

(B) the Contract Sum will be increased or adjusted as valued, certified or assessed by the Superintendent; and

(b) not apply to any other claim, including a Payment Claim, the communication of which is required by another provision of the Contract.'

b. Replace clause 46.2 as follows:

'If the Contractor does not:

(a) give to the Principal and the Superintendent a prescribed notice of claim to which Clause 46.1 applies within 14 days of the Contractor first becoming aware of the circumstances giving rise to the claim; or

(b) give to the Principal or the Superintendent in accordance with the requirements of the Contract any claim or notice required or contemplated to be communicated by a provision of the Contract (other than Clause 46.1) either:

(i) within the time specified by the Contract; or

(ii) if no time is specified, within 14 days of the Contractor first becoming aware of the circumstances giving rise to the claim or notice,

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the Contractor will not be entitled to the claim or to any claim arising from those circumstances.

For the avoidance of doubt, if the Contractor does not make any claim for an extension of time within the time specified in Clause 35.5, the Contractor must not be entitled to an extension of time.

For the purposes of this Cause 46.2, "claim" will include a claim in contract, equity (including for quantum meruit), tort (including for negligence), under statute or otherwise.'

c. In clause 46.4 replace '*payment certificate'* with '*Payment Certificate'*.

41. Amend clause 47 as follows:

a. Amend clause 47.2 as follows:

i. Delete the entirety of 'Alternative 1' and delete only the heading of 'Alternate 2'.

ii. Delete the last paragraph and replace with the following:

'*In the event that the parties decide to follow the methods of resolving the dispute set out in this clause (or cannot agree on methods of resolving the dispute by other means) and the dispute is not resolved within 30 days after the Superintendent has given a decision, the dispute may be submitted to mediation in accordance with, and subject to, the mediation rules of the Resolution Institute.*

If the dispute or difference is not settled within 30 days of the appointment of a mediator to conduct the mediation (unless such period is extended by agreement of the parties) or the parties do not submit the dispute or difference to mediation within 50 days after the Superintendent has given a decision, either party may, by notice in writing delivered by hand or sent by certified mail to the other party, advise the other party that it intends to commence arbitration and either party may then proceed to arbitrate the dispute in accordance with Clause 47.3.'

b. In clause 47.3 insert the word '*Resolution'* between the following words '*The*" and '*Institute'*. In the same sentence, delete '*of Arbitrators Australia'*.

The following clauses have been added to those of AS4300-1995:

42. Insert a new clause 3.1A as follows:

'3.1A Acknowledgment by Contractor

The Contract Sum and any rates to be applied in calculating the Contract Sum (together with any additions or deductions expressly provided for by the Contract):

(a) include all costs, expenses, fees and charges incurred by the Contractor in performing all its obligations under the Contract; and

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(b) will not be subject to any rise and fall or other adjustment for any reason except to the extent expressly provided by the Contract.

*The Contractor agrees that, notwithstanding any other provision of the Contract to the contrary, to the maximum extent permitted by law, it will not be entitled to any claim based on, or arising out of or in connection with, quantum meruit, unjust enrichment or restitution (or similar claims), whether arising out of or in connection with the Contract (including Clause 44.10**Error! Reference source not found.**), under statute, in tort (for negligence or otherwise) or any other basis in law or equity.'*

43. Insert a new clause 3.2A as follows:

'3.2A Schedule of Rates

The Alternative in Annexure Part A in the Contract Header applies.

Alternative 1 – quantities based contract

A Schedule of Rates forms part of the Contract and Clause 3.3 applies.

Alternative 2 – lump sum contract

A Schedule of Rates does not form part of the Contract and Clause 3.2B applies.'

44. Insert a new clause 3.2B as follows:

'3.2B Schedule of Quantities and Prices and Schedule of Rates – no adjustment to the Contract Sum

Unless the Contract expressly provides otherwise, no Schedule of Quantities and Prices or Schedule of Rates will form part of the Contract (they being attached to the Contract Header for identification purposes only) and the Contractor will not be entitled to any adjustment to the Contract Sum or other claim whatsoever in connection with the Schedule of Quantities and Prices or Schedule of Rates (including any error, omission, discrepancy or ambiguity) and Clause 3.3 will not apply. Any Schedule of Quantities and Prices or Schedule of Rates may be referred to by the Superintendent for:

(a) purposes provided for in Clause 40.5; and

(b) certifying payments under Clause 42.1.'

45. Insert a new clause 3.3A as follows:

'3.3A Custom Tariff (Anti-Dumping) Legislation

Notwithstanding the provisions of Clause 3.1A, the Contractor must be responsible for payment of duties (if any) under the Customs Tariff (Anti-Dumping) Act 1975 (Cth) and any security under the Customs Tariff (Anti-Dumping) Act 1975 (Cth) in respect of any duty that might become payable under the Customs Tariff (Anti-Dumping) Act 1975 (Cth).

The lump sum or rates accepted by the Principal for the work under the Contract must include for all amounts payable under this clause and omissions in Schedules of Rates to specifically identify items in respect of such amounts will be the Contractor's risk under Clause 3.3 and the Contractor will not be entitled to any additional remuneration whatsoever in respect of any such amounts that are payable or that may become payable.

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The Contractor must indemnify the Principal in respect of any payments that are payable or that may become payable under the Custom Tariff (Anti-Dumping) Act 1975 (Cth) or in respect of any security that is payable or may become payable under the Customs Tariff (Anti-Dumping) Act 1975 (Cth) for duty that might become payable under the Custom Tariff (Anti-Dumping) Act 1975 (Cth).'

46. Insert a new clause 3.3B as follows:

'3.3B Sale of Goods Legislation

The Sale of Goods (Vienna Convention) Act 1986 (Qld) is excluded and will have no effect upon the terms of the Contract.'

47. Insert a new clause 3.3C as follows:

'3.3C Use or occupation of the Works

The Contractor agrees that:

(a) the Principal may use or occupy (and allow others to use or occupy) any part of the work under the Contract (including any Separable Portion) prior to Practical Completion being achieved in respect of that part of the work under the Contract; and

(b) despite any other provision of the Contract, such use or occupation of any part of the work under the Contract (including any Separable Portion) prior to Practical Completion will not:

(i) constitute Practical Completion of that part of the work under the Contract, or any Separable Portion, having been achieved;

(ii) constitute approval of any work under the Contract or other matter;

(iii) prejudice any claim or right of the Principal under or in connection with the Contract; or

(iv) prejudice the claim or right of the Contractor under Clause 16 and Clause 35.5 or Clause 36 (if any).'

48. Insert a new clause 4.2A as follows:

'4.2A Work Warranties

(a) The Contractor must ensure that all warranty entitlements required for the components of the Works by the Contract or available in respect of, or as a result of, the Works include the Principal and Contractor as named beneficiaries or are capable of being assigned to the Principal or its nominees and, in any event, are assigned to the Principal or its nominees prior to Practical Completion. The form of warranties must be to the approval of the Superintendent and must be submitted prior to, and as a pre-requisite to achieving, Practical Completion. Failure to comply with this requirement will render the Contractor deemed responsible for provision of equivalent warranties to meet any loss to the Principal as a result.

(b) The Contractor agrees that despite any other provision of the Contract, where a subcontractor, manufacturer or supplier offers a warranty on goods, materials, workmanship or labour, in addition to or on terms more favourable to the Principal

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than those required by the Contract, such additional warranties shall be provided to the Principal by the Contractor at no cost and expense to the Principal prior to, and as a pre-requisite to achieving, Practical Completion.'

49. Insert a new clause 4A as follows:

*'**4A DILAPIDATION SURVEY***

4A.1 Correctness of Dilapidation Survey

The Contractor undertakes to complete the work under the Contract to ensure that the adjoining building, works or structures are not affected by execution of the work under the Contract adversely to the condition in which those buildings, works and structures were on the date that possession of the Site was given to the Contractor.

The Contractor and the Principal confirm that accuracy and completeness of the dilapidation surveys provided by the Principal in relation to the buildings, works and structures surrounding the Site as at the date of those surveys.

The Contractor indemnifies the Principal and the Superintendent against all claims, losses, actions, damages, costs (including legal costs) and expenses whatsoever arising out of or in connection with any failure by the Contractor, its subcontractors, their employees or agents to comply with or perform any of the Contractor's obligations under this clause.'

50. Insert a new clause 5.5A as follows:

*'**5.5A Retention of Security***

Despite any other provision of the Contract:

(a) a party holding security may continue to hold security where the Contract may otherwise require it to be released or after termination of the Contract for any reason, to the extent of any amount claimed by the party under or in connection with the Contract (whether liquidated or otherwise);

(b) where the Contract is terminated by reason of the Contractor repudiating the Contract, being in substantial breach of the Contract or having an event referred to in Clause 44.11 occur in respect of it, the Principal may have immediate recourse to security after termination for any claim to money which the Principal may have against the Contractor under or in connection with the Contract (whether liquidated or otherwise); and

(c) where the Contract is terminated in circumstances other than those referred to in paragraph (b), the Principal may have recourse to security after termination where the Contractor fails to pay any amount which becomes due to the Principal within the specified period for payment or, if no period is specified, within 5 Business Days.'

51. Insert a new cluse 6.2A as follows:

*'**6.2A Collusive Arrangements:***

The Contractor warrants and represents to the Principal that:

(a) it had no knowledge of the tender price of any other tenderer, nor did it communicate with any other tenderer in relation to its tender price, or a price above or below which a

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tenderer may tender (excluding any pricing advised by the Principal), nor had it entered into any contract, arrangement or understanding with another tenderer to the effect that the Contractor or another tenderer would tender a non-competitive price, for the work under the Contract, at the time of submission of its tender;

(b) except as disclosed in its tender, it has not entered into any contract, arrangement or understanding to pay or allow any money directly or indirectly to a trade, industry or other association (above the published standard fee) relating in any way to its tender or this Contract, nor paid or allowed any such money, nor will it pay or allow any such money;

(c) except by prior agreement with the Principal, it has not paid or allowed any money or entered into any contract, arrangement or understanding to pay or allow any money directly or indirectly to or on behalf of any other tenderer for the work under the Contract, nor received any money or allowance from or on behalf of any other tenderer relating in any way to its tender or this Contract, nor will it pay or allow or receive any money as aforesaid.

In the event of the Contractor paying or allowing any money in breach of this Clause 6.2A, the amount will be a debt due and payable by the Contractor to the Principal and the Principal may deduct from payments to the Contractor an equivalent sum as an amount due from the Contractor to the Principal, in addition to any other claim, demand, action or proceeding the Principal may have against the Contractor (whether for damages or otherwise).

Without limitation, any breach of this Clause 6.2A by the Contractor is a substantial breach of contract under Clause 44.2.'

52. Insert a new clause 6.2B as follows:

'***6.2B Parties to the Contract***

(a) The obligations of the Contractor, if more than one person, under this Contract, are joint and several and each person constituting the Contractor acknowledges and agrees that it will be causally and vicariously liable for the acts and omissions (including breaches of this Contract) of the other as if those acts or omissions were its own.

(b) The rights of the Contractor, if more than one person, under this Contract (including the right to payment) jointly benefit each person constituting the Contractor (and not severally or jointly and severally).

(c) Any payment by the Principal under this Contract to any account nominated in writing by the Contractor, or failing such nomination, to any one or more persons constituting the Contractor, will be deemed to be payment to all other persons constituting the Contractor.

(d) The Contractor may not exercise any right under this Contract unless that right is exercised concurrently by all persons constituting the Contractor.'

53. Insert a new clause 8.3A as follows:

*'**8.3A Principal-Supplied Information***

In this clause, 'Principal-Supplied Information' means any information (whether documented or otherwise) supplied or made available to the Contractor by or on behalf of the Principal before

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or after the Date of Acceptance of Tender including those documents referred to in Annexure Part A in the Contract Header (even where such documents have been included in the Specification, which have been included for identification purposes only). Principal-Supplied Information does not include information in documents forming part of the Contract in accordance with Clause 4 of the Contract Header.

The Contractor agrees:

(a) unless the Principal expressly agrees otherwise in writing, any Principal-Supplied Information:

(i) has been or will be provided only for the Contractor's convenience; and

(ii) has not been and will not be relied upon by the Contractor for any purpose (including entering into the Contract or performing its obligations under the Contract);

(b) the Principal does not:

(i) assume any responsibility or duty of care in respect of; or

(ii) warrant, guarantee or make any representation as to, the Principal-Supplied Information (including its accuracy, completeness or adequacy for the purposes of the Contract);

(c) the Principal will not be liable to the Contractor in contract, tort, equity, under statute or otherwise arising from or in connection with the Principal-Supplied Information, the provision of the Principal-Supplied Information or the non-provision of any other information by the Principal; and

(d) the Contractor will not be entitled to any extension of time, adjustment to the Contract Sum or other claim arising from or in connection with the inaccuracy, incompleteness or inadequacy of the Principal-Supplied Information.'

54. Insert a new clause 8.8 as follows:

'8.8 As-Built Documentation

The Contractor acknowledges that design certification and the provision of complete and precise As-Built Documentation in the form required under the Contract and this Clause 8.8, has a significant bearing on the Principal's ability to properly and safely design, use, maintain, modify and, if necessary, demolish the Works, and therefore also has a significant bearing on the Principal's ability to achieve maximum value for money for the work under the Contract.

The Contractor must:

(a) give the Superintendent for review:

(i) all As-Built Documentation at the same time the Contractor gives the notice required under the first paragraph of Clause 42.3; and

(ii) all changes to the As-Built Documentation previously reviewed and acknowledged or approved by the Superintendent;

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(b) allow, for documents submitted under Clause 8.8(a), 10 Business Days for the Superintendent to review those documents; and

(c) if the Superintendent gives the Contractor a written notice within the time allowed for its review stating that any As-Built Documentation submitted for its review does not comply with the requirements of the Contract:

(i) amend the relevant document so that it complies with those requirements;

(ii) promptly, and otherwise within the time stated by the Superintendent in the written notice, resubmit the amended document to the Superintendent for its review; and

(iii) allow the Superintendent 10 Business Days to review the amended document.

(d) The Contractor also acknowledges that:

(i) the provision of final drafts of the As-Built Documentation to the Superintendent in accordance with this Clause 8.8; and

(ii) the review and acceptance of final drafts of the As-Built Documentation by the Superintendent in accordance with this Clause 8.8,

are a condition precedent to the Contractor achieving Practical Completion.

If the As-Built Documentation is not provided to the Superintendent in accordance with Clause 8.8, or are not reasonably acceptable to the Superintendent, the Superintendent must provide written notice to the Contractor advising of such failure and, if applicable, why the As-Built Documentation is not reasonably acceptable. The Contractor must amend the As-Built Documentation as set out in the Superintendent's notice within 15 Business Days of the notice, failing which, and without limiting any other rights of the Principal, the Principal may itself or engage others to amend the As-Built Documentation and the costs incurred (including the costs associated with obtaining information from the Contractor and other third parties), together with the damages that the Principal is likely to suffer in connection with the Contractor's breach, will be a debt due and payable by the Contractor to the Principal.'

55. Insert a new clause 8.9 as follows:

'***8.9 Requirements of Additional Obligation Documents***

The Contractor:

(a) acknowledges that it has read and understands and has had the opportunity to satisfy itself as to;

(b) must satisfy the requirements of; and

(c) without limiting paragraph (b), must comply with all obligations of the Principal (and not, by any act or omission, put the Principal in breach of),

the agreements, licences, approvals or other documents referred to in Annexure Part A in the Contract Header (so far as they are relevant to the carrying out of work under the Contract or the Works) ('Additional Obligation Documents').

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The Contractor will not be entitled to any extension of time, adjustment to the Contract Sum or any other claim arising from the matters or requirements disclosed in or which could have been anticipated from information in the Additional Obligation Documents.'

56. Insert a new clause 13.2A as follows:

'13.2A Disclosure of Information, Records and Contract Material

The Contractor must not use Records for any purpose other than in the performance of the work under the Contract and must not allow unauthorised persons to have access to the Records while in the Contractor's possession or control during or after the completion of the work under the Contract.

Without limiting the Principal's rights or obligations in connection with disclosure of information (including pursuant to the Right to Information Act 2009 (Qld)), the Principal may publish information including:

(a) the name and address of the Contractor;

(b) a description of the work under the Contract to be provided pursuant to the Contract;

(c) the date of award of the Contract (including the relevant stages of the Contract, if any);

(d) the Contract value (including the value for each stage, if any, and advice as to whether any non- price criteria were used when evaluating the Contractor's offer); and

(e) the procurement method used to engage the Contractor.'

57. Insert a new clause 14.1A as follows:

*'**14.1A Contractor to Obtain Approvals***

The Contractor agrees the Contractor must procure and pay for all certificates, licences, consents, permits and other approvals:

(a) necessary for the lawful carrying out of work under the Contract; and

(b) without limiting paragraph (a), relating to the completion, occupation or use of the Works or the work under the Contract, other than the certificates, licences, consents, permits and other approvals expressly referred to in Annexure Part A in the Contract Header that have or will be obtained by the Principal.'

58. Insert a new clause 14.1B as follows:

*'**14.1B Taxes, duties and charges***

Subject to the other provisions of the Contract, the Contractor must:

(a) pay, and reimburse the Principal for the payment of, all sales tax, customs duties, stamp duties, goods and services tax and other duties, charges, taxes or imposts payable in connection with the carrying out of work under the Contract (including the provision of all work under the Contract); and

(b) provide all security required under any Legislative Requirement as security for the payment of any duties, charges, taxes or imposts.'

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59. Insert a new clause 14A as follows:

'14A WORK HEALTH AND SAFETY

(a) From the date that the Contractor has access to the Site:

(i) subject to Clause 14A(a)(iii), the Principal appoints the Contractor as the "principal contractor" (as defined by the Work Health and Safety Law) in respect of the construction project;

(ii) the Contractor accepts appointment under Clause 14A(a)(i);

(iii) the construction project in respect of which the Contractor is appointed "principal contractor" under Clause 14A(a)(i) includes:

(A) all work under the Contract (other than work under the Contract carried out upon Non Principal Contractor Site); and

(B) all works (whether or not work under the Contract) carried out or to be carried out upon Principal Contractor Site (including works carried out by Separate Contractors); and

(iv) the Principal authorises the Contractor to:

(A) assume management and control of the Principal Contractor Site; and

(B) carry out and discharge the duties given to the "principal contractor" under Chapter 6 of the Work Health and Safety Regulation 2011 (Qld),

for the period during which the Contractor is the 'person in control' of the Principal Contractor Site (as referred to in Clause 14A(d)), unless and to the extent that such authorisation is withdrawn by the Principal in writing prior to the end of that period.

(b) The Contractor will consult with the Principal and will consult with the designers of the whole or any part of a structure to be constructed under the Contract, about how to ensure that risks to health and safety arising from the design are eliminated during construction of the work under the Contract or, if it is not reasonably practicable to eliminate the risks, minimise, so far as is reasonably practicable.

(c) The Contractor will, in performing its obligations under the Contract, take into account and take appropriate action having regard to any information given to the Contractor by the Principal or any other person, about hazards and risks at or in the vicinity of the workplace where the work under the Contract is being carried out.

(d) The Contractor is for the purposes of the Work Health and Safety Law the 'person in control' of the site and all things on the site:

(i) from the date that the Contractor has access to the Site until the Date of Practical Completion; and

(ii) during the time of, and for so long as that part of the site is affected by, the carrying out of work under the Contract during the Defects Liability Period.

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(e) The Contractor must indemnify the Principal against any claim, action, demand, loss, damage, cost or expense which may be brought against, or suffered or incurred by, the Principal as a result of or in connection with:

(i) any breach of this Clause 14A by the Contractor;

(ii) any breach by the Contractor of its obligations under the Work Health and Safety Law;

(iii) any enforcement of obligations imposed on the Contractor under the Work Health and Safety Law.

(f) If a Notifiable Incident occurs at the workplace at which the work under the Contract is being undertaken, the Contractor must:

(i) immediately notify the regulator and the Superintendent of the Notifiable Incident; and

(ii) take all reasonably practicable steps to secure the Site where the Notifiable Incident occurred until an inspector arrives at the Site or any earlier time that an inspector directs.'

60. Insert a new clause 14B as follows:

'14B SUBCONTRACTORS' CHARGES LEGISLATION / PAYMENT WITHHOLDING REQUEST

Where any person at any time lodges, or purports to lodge:

(a) under the Subcontractors' Charges Legislation, a charge over any moneys (including retention moneys or security); or

(b) a Payment Withholding Request for any moneys,

payable under this Contract by the Principal to the Contractor, the Contractor agrees that any additional losses, costs or expenses that the Principal suffers or incurs arising from or in connection with the lodgement of the charge (including in responding to any notice of claim or paying any moneys into court) or the Payment Withholding Request will be a debt due and payable to the Principal by the Contractor, whether or not the charge or Payment Withholding Request is validly lodged or any action taken by the person lodging the charge or Payment Withholding Request is successful.'

61. Insert a new clause 14C as follows:

'14C SECURITY OF PAYMENT ACT REQUIREMENTS

14C.1 Provisions subject to the Security of Payment Act

(a) The rights and obligations of the parties under the Contract are subject to the provisions of the Security of Payment Act to the extent that they apply and have not been contracted out of.

(b) Where there is any inconsistency between the Contract and the Security of Payment Act, the Security of Payment Act will prevail to the extent necessary to avoid the inconsistency.

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(c) Terms used in this clause and defined in the Security of Payment Act, will have the meaning given to them by the Security of Payment Act.

14C.2 Definition of Reference Date for the Purposes of Security of Payment Act

(a) The Contractor will only be entitled to make a Payment Claim from each date stated in or worked out under the Contract (including paragraph b)).

(b) Despite any other provision of the Contract to the contrary, where the Contract provides that until the satisfaction of any condition or occurrence of any event that is a precondition to the date on which a Payment Claim (including a Payment Claim under Clause 42.1 and the Final Payment Claim) may be made ('Claim Precondition'), then the only date on which a claim for that Progress Payment may be made by the Contractor will be the later of:

(i) the date of satisfaction of the last Claim Precondition to be satisfied; and

(ii) the date after which that Progress Payment can otherwise be made under the Contract.

(c) For the purposes of this clause, Clause 42.1 and 45A, the Claims Preconditions are as stated in Annexure Part A in the Contract Header.

14C.3 Calculations or Valuation of Progress Payments under the Security of Payment Act

Despite any other provision of the Contract and notwithstanding Clause 42.1, in calculating any Progress Payment to which the Contractor is entitled to in relation to the Contract, and in respect of which the Contractor is entitled to any Payment Claim:

(a) the following amounts must not be included:

(i) any amount which the Contract provides cannot be claimed or is not payable because of the failure by the Contractor to take any action (including to give notice to the Principal or Superintendent);

(ii) any amount which represents unliquidated damages claimed against the Principal (whether for breach of contract, in tort or otherwise);

(iii) any amount released under Clauses 42.3 or Clause 42.6;

(iv) any amount which the Contract provides is not payable until certain events have occurred or conditions have been satisfied, to the extent those events have not occurred or those conditions have not been satisfied; or

(v) any amount in respect of which the obligation of the Principal to make payment has been suspended under the Contract;

(b) the following amounts must be deducted:

(i) any amounts which:

(A) have become due from the Contractor to the Principal under the Contract;

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(B) have been claimed by the Principal (acting bona fide) under or in connection with the Contract at any time;

(C) the Principal is entitled under the Contract to set off against the Progress Payment; or

(D) are estimated to be amounts likely to become due from the Contractor to the Principal under or in connection with the Contract as a result of any act or omission of the Contractor (including breach of the Contract); and

(ii) any amounts which the Principal is entitled under the Contract to withhold, deduct or retain from the Progress Payment (including pursuant to Clause 5); and

(iii) any amounts stated in the statutory declaration provided by the Contractor in accordance with Clause 42.1A(e) and (f) as remaining payable to subcontractors or workers;

(c) in determining amounts to be excluded or deducted under paragraphs a) and b), regard must be had to matters or circumstances occurring at any time before the date that the determination is being made; and

(d) the value of any work under the Contract relevant to the Progress Payment must:

(i) be determined having regard to the Contract Sum (with additions or deductions provided for by the Contract);

(ii) include a deduction equal to the greater of:

(A) the diminution in value of work under the Contract resulting from; and

(B) the estimated cost of rectifying in accordance with the Contract,

any omitted or defective work under the Contract;

(iii) exclude the value of any unfixed plant or materials (unless the Contract expressly provides for payment for the unfixed plant or materials and the Contractor has fully satisfied those requirements which the Contract provides are to be fulfilled before the Principal is required to pay for those items); and

(iv) not include any amount in respect of which the Contractor has failed to provide supporting material or information as required by the Contract or in respect of which the Superintendent has not been able inspect any Record to properly determine the amount pursuant to Clause 48C(b).

14C.4 Service Under the Security of Payment Act on Superintendent

Notwithstanding any other provision of the Contract, the Contractor agrees that in the event it is seeking to serve any claims, notices and other documents upon the Principal under the Security of Payment Act, the Contractor must only do so by serving such claim, notice or other document upon the Superintendent in accordance with Clause 7 and the Superintendent is the Principal's agent for such purpose.

14C.5 Payment Schedule issued by Superintendent

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(a) If within the time allowed by the Security of Payment Act for the service of a payment schedule by the Principal, the Principal does not:

(i) serve the payment schedule itself; or

(ii) notify the Contractor that the Superintendent does not have authority from the Principal to issue the payment schedule on its behalf,

then a Payment Certificate issued by the Superintendent under the Contract which relates to the period relevant to the payment schedule must be taken to be the payment schedule for the purpose of the Security of Payment Act (whether or not it is expressly stated to be a payment schedule).

(b) The Principal authorises the Superintendent to issue payment schedules on its behalf (without affecting the Principal's right to issue a payment schedule itself).

(c) Nothing in paragraphs a) or b) will prejudice the obligations of the Principal relating to the manner in which the Superintendent is to exercise its function of issuing a Payment Certificate, whether or not the Payment Certificate is or may also be a payment schedule.

(d) In responding to the Contractor under the Security of Payment Act, the Superintendent also acts as the agent of the Principal.

14C.6 Notice of Communications to the Superintendent

The Contractor must:

(a) ensure that a copy of any written communication it delivers or arranges to deliver to the Principal of whatever nature in relation to the Security of Payment Act or the QBCC Act, (including a Payment Claim under the Security of Payment Act), is provided to the Superintendent at the same time;

(b) promptly (and within one Business Day) give the Superintendent a copy of any written communication of whatever nature in relation to the Security of Payment Act or the QBCC Act (including a Payment Claim, adjudication application, adjudication determination or notice to suspend works under the Security of Payment Act), which the Contractor receives from a subcontractor; and

(c) ensure that each subcontractor promptly (and within one Business Day) gives the Superintendent a copy of any written communication of whatever nature in relation to the Security of Payment Act or the QBCC Act (including a Payment Claim, adjudication application, adjudication determination, or notice to suspend works under the Security of Payment Act), which the subcontractor receives from another party.

14C.7 Contractor's Remedies Limited

Nothing in the Contract will be construed to:

(a) make any act or omission of the Principal in contravention of the Security of Payment Act (including failure to pay an amount becoming due under the Security of Payment Act), a breach of the Contract (unless the Principal would have been in breach of the Contract had the Security of Payment Act had no application); or

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(b) give to the Contractor rights or remedies under the Contract which extend or are in addition to rights or remedies given to the Contractor by the Security of Payment Act in respect of any act or omission of the Principal in contravention of the Security of Payment Act.

14C.8 Suspension by Contractor

If the Contractor, at any time suspends the whole or any part of the work under the Contract pursuant to the Security of Payment Act then, despite any other provision of the Contract:

(a) the Date for Practical Completion will not be affected but the suspension will be a cause of delay for which the Contractor may claim an extension of time in accordance with the Contract;

(b) except as expressly provided in paragraph a), Clause 14C.7 will apply; and

(c) except to the extent as expressly provided under the Security of Payment Act, the Principal will not be liable for any costs, expenses, damages, losses or other liability whatsoever suffered or incurred by the Contractor as a result of the suspension.

14C.9 Suspension by Subcontractors

If any subcontractor at any time suspends the provision by it of work, services, materials or other things (which form part of the work under the Contract) pursuant to the Security of Payment Act, despite any other provision of the Contract:

(a) the Contractor will not be relieved of any of its obligations under the Contract and the suspension by the subcontractor will not entitle the Contractor to any claim (including without limitation, for an extension of time under Clause 35 or delay or disruption costs under Clause 36); and

(b) the Contractor must immediately provide to the Superintendent full details of the circumstances giving rise to the subcontractor's right or alleged right to suspend or take any other action.

14C.10 Adjudication

Where an adjudication occurs under the Security of Payment Act and, if required by the Security of Payment Act to do so, the Principal has paid the adjudicated amount to the Contractor:

(a) the Principal may provide a copy of the adjudicator's determination to the Superintendent; and

(b) where an adjudicator's determination is quashed, overturned or declared to be void, the adjudicated amount will become a debt due and immediately payable by the Contractor to the Principal.

14C.11 Construction of Contract Provisions

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To the extent any provision of the Contract is (or may, if not for the operation of this clause, be) found to be void under the Security of Payment Act, the provision must be construed or severed from the Contract in a manner which:

(a) avoids the provision or any other provision of the Contract being void; and

(b) subject to paragraph a), preserves to the maximum possible extent:

(i) the enforceability of the provision and the other provisions of the Contract; and

(ii) the original effect and intent of the Contract.'

62. Insert a new clause 14D as follows:

'14D QBCC REQUIREMENTS

14D.1 Provisions Subject to QBCC Act

(a) The rights and obligations of the parties under the Contract are subject to the provisions of the QBCC Act to the extent they apply.

(b) Where there is any inconsistency between the Contract and the QBCC Act, the QBCC Act will prevail to the extent necessary to avoid the inconsistency.

(c) Terms used in this clause and defined in the QBCC Act, will have the meaning given to them by the QBCC Act.

14D.2 Contractor's Registration

The Contractor warrants it is currently registered under the QBCC Act (under the registration number set out in Annexure Part A in the Contract Header) to carry out work under the Contract.

If the Contractor is unable to perform any of work under the Contract which requires a licence under the QBCC Act because:

(a) it has failed, refused or been unable to obtain the appropriate class of licence under the QBCC Act or its licence has been cancelled or suspended; or

(b) of any difficulty with a subcontractor (including that the subcontractor's licence has been cancelled or suspended, or the subcontractor does not hold the licence of the appropriate class),

then the Principal may issue a notice to the Contractor pursuant to clause 44.2 and the Contractor will not be entitled to any claim for delays incurred or additional costs to engage a replacement subcontractor (including without limitation, an extension of time under Clause 3536 or delay or disruption costs under Clause 36).

14D.3 Directions in writing

(a) Despite any other provision of the Contract, the Contractor is not obliged to comply with any direction given by the Principal or Superintendent pursuant to the Contract until the direction is given in writing.

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(b) If the Contractor intends to not comply with a direction until the direction is given in writing, the Contractor must notify the person giving the direction of that intention immediately the direction is first given.

14D.4 Security

Despite any other provision of the Contract, the parties agree that to the extent that:

(a) the QBCC Act applies; and

(b) the Contract provides for the total of:

(i) all retention amounts withheld by the Principal; and

(ii) all securities held by the Principal,

to exceed 2.5% of the Contract Sum for the Contract (which under the QBCC Act includes adjustments for variations) after Practical Completion has been reached, the amount of the excess does not relate to the need to correct defects identified in the defects liability period but instead to the recovery by the Principal of any other costs, damages, liabilities or other amounts which may become payable to the Principal by the Contractor under or in connection with the Contract, the Contractor's performance of the Contract or any breach of contract by the Contractor.

14D.5 Application of section 67J QBCC Act

The parties agree that for the purposes of section 67J of the QBCC Act (Relevant Section) to the extent it applies:

(a) the Principal authorises the Superintendent to give on behalf of the Principal the notices referred to in the Relevant Section;

(b) the Contractor accepts that any Payment Certificate issued by the Superintendent or the Principal under this Contract which refers to an amount owed by the Contractor to the Principal must be taken to be advice from the Principal of the proposed use of security (as defined in the QBCC Act) held by the Principal to obtain the amount owed; and

(c) to the extent required by the Relevant Section, the Superintendent must give to the Contractor on the Principal's behalf any notice required pursuant to the Relevant Section to ensure the Principal's rights to use security (as defined in the QBCC Act) are not prejudiced.

14D.6 Security not to exceed 5%

The parties acknowledge that under the QBCC Act, unless the parties expressly agree otherwise, to the extent that it applies, section 67K(2) of the QBCC Act makes this Contract subject to a condition that at any time before practical completion (as that term is used in the QBCC Act) the total of:

(a) all retention moneys withheld by the Principal; and

(b) all securities held by the Principal,

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under this Contract (other than those referred to in section 67K(3) of the QBCC Act) is not to exceed 5% of the Contract Sum for this Contract (which under the QBCC Act includes adjustments for variations).'

63. Insert a new clause 14E as follows:

'14E NGERS

The Contractor acknowledges that the Principal is subject to and must comply with NGERS.

The Contractor must provide all reasonable assistance to the Principal to enable it to comply with its obligations under NGERS, including but not limited to:

(a) keeping and maintaining for a period of 7 years, accurate records of:

(i) the amount of greenhouse gases directly emitted; and

(ii) the amount of energy (including diesel, electricity or other fuels) used,

in performing any of its obligations under the Contract; and

(b) allowing the Principal access to those records and providing a copy of those records to the Principal upon request.

Notwithstanding any other provision of the Contract, the Contractor is not entitled to any increase in the amount payable to it by the Principal in connection with the Contractor:

(c) complying with its obligations under this Clause 14E; or

(d) performing other obligations under the Contract which it may incur as a result of NGERS, and the Contract Sum is deemed to include all of the Contractor's costs of performing such obligations.

and the Contract Sum is deemed to include all of the Contractor's costs of performing such obligations.

64. Insert a new clause 14F as follows:

'14F PERSONAL PROPERTY SECURITIES ACT

(a) If the Principal or the Superintendent determines that this Contract (or a transaction in connection with it) is or contains a Security Interest, the Contractor agrees to do anything (including obtaining consents, signing and producing documents, getting documents completed and signed and supplying information) as the Principal may reasonably require for the purposes of:

(i) ensuring that the Security Interest is enforceable, perfected and otherwise effective and ranks ahead of other Security Interests;

(ii) enabling the Principal to apply for, and obtain, any registration or providing any notification in accordance with the PPSA; and

(iii) enabling the Principal to exercise any right in connection with the Security Interest or the property the subject of the Security Interest.

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(b) The Contractor waives each right to receive any notice from the Principal under the PPSA (including notice of a verification statement) that can be waived.

(c) Except as expressly agreed in writing to the contrary, the Contractor:

(i) acknowledges that neither this Contract nor a transaction in connection with it is intended to provide for a Security Interest in favour of the Contractor; and

(ii) accordingly, agrees that it will not register or otherwise perfect or seek to perfect any Security Interest, and will remove any registration, in respect of this Contract or a transaction in connection with it.

(d) The Contractor must:

(i) promptly notify the Principal and the Superintendent if it knows or becomes aware (whether by receipt of a notice under the PPSA or otherwise) that a third party has or claims a Security Interest in any goods or materials:

(A) owned by the Principal; or

(B) supplied or to be supplied by the Contractor to the Principal; or

(C) in which the Principal has an interest;

(ii) give the Principal and the Superintendent any information reasonably required by the Principal or the Superintendent in relation to any such Security Interest or claim; and

(iii) on request by the Principal or the Superintendent, use best endeavours to ensure that the third party:

(A) discharges any such Security Interest, and does not register or otherwise perfect or seek to perfect, and removes any registration, in respect of any such Security Interest; or

(B) subordinates any such Security Interest to the interest of the Principal, by an agreement in form and substance satisfactory to the Principal.

(e) Without limiting paragraphs (c) and (d), at any time when title to or ownership of any plant, goods or materials is passed to the Principal, the Contractor must ensure that title or ownership is passed free of any Security Interest of the Contractor or any other person.

(f) The Contractor must ensure that each subcontract has, for the benefit of the Principal, a clause that reflects this Clause 14F.

(g) Without limiting Clause 8.6, neither the Principal nor the Contractor will disclose information of the kind mentioned in section 275(1) of the PPSA and the Contractor will not authorize, and will ensure that no other party authorises, the disclosure of such information. However this does not prevent disclosure where required under section 275 of the PPSA because of the operation of section 275(7) of the PPSA.'

65. Insert a new clause 14G as follows:

'14G CONTRACTOR'S METHODOLOGY AND RESOURCING DOCUMENTS

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The parties agree that the Methodology and Resourcing Documents:

(a) do not form part of the Contract;

(b) without limiting Clause 14G(a), will not be:

(i) taken to define or describe the extent; or

(ii) relied upon by the Contractor as limiting or evidencing the satisfactory performance,

of the work under the Contract or the Contractor's obligations under the Contract;

(c) must be complied with by the Contractor in performing the work under the Contract unless the Principal or the Superintendent allows or requires otherwise;

(d) may be used by the Principal or the Superintendent for the purposes of:

(i) defining the minimum requirements to be fulfilled by the Contractor in complying with the Contract;

(ii) assessing any claim, including claims for extra costs (including delay costs) or for an extension of time; and

(iii) undertaking a valuation under Clause 40.5,

to the extent the Principal or the Superintendent considers its reasonable to do so; and

(e) must not be changed without the agreement of both parties.

Without limitation, any breach of this Clause 14G (including, without limitation, any breach of the Methodology and Resourcing Documents) by the Contractor is a substantial breach of contract under Clause 44.2.'

66. Insert a new clause 14H as follows:

'14H CONTRACTOR'S PLANS

The Contractor must:

(a) prepare and submit the Contractor's Plans in accordance with the Principal's Project Requirements; and

(b) not comply with the Contractor's Plans until it has complied with Clause 8.4 and the Superintendent has approved them as being satisfactory pursuant to Clause 8.4.'

67. Insert a new clause 14I as follows:

'14I Environmental Harm

The Contractor must indemnify the Principal against all claims, demands, actions, costs (including legal costs), charges, expenses, damages, loss or other liability (including without limitation in tort, under any law), incurred in connection a breach by the Contractor of:

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(a) the conditions of any environmental authority or other approval or permit whatsoever pertaining to the Works or the work under the Contract; or

(b) any relevant environmental Legislative Requirement,

arising out of or as a consequence of the carrying out of the work under the Contract.'

68. Insert a new clause 14J as follows:

'14J HEAVY VEHICLES

(a) The Contractor must ensure that all work under the Contract is carried out in accordance with Heavy Vehicle Laws and Heavy Vehicle Safety Requirements.

(b) Without limiting Clause 14J(a), the Contractor must at all times:

(i) discharge its duties under Heavy Vehicle Law; and

(ii) ensure the Contractor's employees and subcontractors (Personnel) discharge their respective duties under Heavy Vehicle Law,

in connection with all work under the Contract.

(c) The Contractor must ensure that all Heavy Vehicles operated by the Contractor or the Contractor's Personnel in connection with work under the Contract comply with Heavy Vehicle Laws and Heavy Vehicle Safety Requirements.

(d) The Contractor:

(i) must ensure that the Contractor's Program:

(A) enables the Contractor to discharge its duties under Heavy Vehicle Law; and

(B) allows for the use and operation of Heavy Vehicles associated with work under the Contract to comply with Heavy Vehicle Safety Requirements, including but not limited to mass, dimensions, loading, speed and fatigue; and

(ii) warrants that it has taken into account the Heavy Vehicle Safety Requirements before:

(A) submitting any revised Contractor's Program; and

(B) committing to execute the Works to Practical Completion by the Date for Practical Completion and any other time based obligation.

(e) The Principal or the Superintendent may at any time conduct their own audit of the Contractor's records for its Heavy Vehicles and compliance with Heavy Vehicle Safety Requirements (including any safety management systems of the Contractor) and the Contractor must:

(i) co-operate fully with the Principal or the Superintendent in connection with that audit (including by providing all necessary access, Policies and Plans or other information); and

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(ii) immediately address, and ensure the Contractor's Personnel address, any issues identified by the Principal or the Superintendent from their audit and notified to the Contractor.

(f) The Superintendent may issue a direction at any time if it considers that the Contractor has not complied or may potentially not comply with the requirements in this Clause 14J. The Contractor shall have no claim due to the Superintendent issuing, or failing to issue, any such direction.

(g) The Contractor must immediately notify the Principal and the Superintendent of:

(i) any breach or potential breach by the Contractor or any of the Contractor's Personnel of the Heavy Vehicle Safety Requirements; or

(ii) any notice or direction received by the Contractor or any of the Contractor's Personnel under or in connection with Heavy Vehicle Law (including by providing a copy of the notice or direction to the Principal and the Superintendent).'

69. Insert a new clause 22.7 as follows:

*'**22.7 Miscellaneous Insurance Provisions***

The Contractor must:

(a) pay all excesses and deductibles under a policy of insurance effected by the Principal or Contractor under the Contract, unless the claim includes only loss, damage or claims that only the Principal is responsible for under the Contract;

(b) ensure that it:

(i) satisfies itself as to; and

(ii) complies strictly with,

the terms of any policy of insurance effected under or pursuant to the Contract;

(c) at its own cost and expense effect any additional insurance it considers necessary in connection with the work under the Contract;

(d) to the extent directed by the Superintendent, allow the Principal to make, negotiate and settle any insurance claim in which the Principal is interested;

(e) at its own cost and expense, effect any additional insurance it considers necessary in connection with work under the Contract or the Works;

(f) allow for the reimbursement of the value of any GST applicable to a claim under any insurance that is the responsibility of the Contractor under the Contract;

(g) ensure that any proceeds received from any insurance claim in which the Principal is interested are paid (in priority to any other payments) to compensate the Principal as fully as possible for any loss, damage, claim or other liability of the Principal covered by the policy; and

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(h) despite any other provision of the Contract, accept as full payment for any reinstatement or replacement of work under the Contract which is the subject of an insurance claim and does not arise from an Excepted Risk defined in Clause 16.3 not caused or contributed to by the Contractor, the amount of insurance proceeds recovered by the Principal or Contractor in respect of that reinstatement or replacement.'

70. Insert a new clause 23.1A as follows:

'23.1A Principal's and Superintendent's Discretions

Except to the extent expressly provided by the Contract, the Contractor agrees that:

(a) the Principal and the Superintendent may exercise their discretions and rights under the Contract in whatever way the Principal or the Superintendent decide in their sole and unfettered discretion, in the Principal's interest's only and without being under any obligation to do so; and

(b) the Principal and the Superintendent may grant, refuse or grant subject to conditions any consent or approval required from the Principal or the Superintendent in their sole and unfettered discretion.'

71. Insert a new clause 27.1A:

'27.1A Access only

Despite any other provision of the Contract, where Annexure Part A in the Contract Header specifies that the Contractor is to have only access to the Site:

(a) references in the Contract to "possession of" the Site must be read as "access to" the Site;

(b) the Contractor will have no right of exclusive occupation of any part of the Site and must access the Site only in accordance with the directions of the Superintendent.'

72. Insert a new clause 27.5A as follows:

'27.5A Extra Land Required by Contractor

The Contractor must procure for itself and at its own cost the right to the occupation or use of any land in addition to the Site which the Contractor may deem necessary for the execution of the work under the Contract or for the purposes of the Contract and must, prior to, and as a pre-requisite to achieving Practical Completion, provide a properly executed release from all claims or demands (whether for damages or otherwise whatsoever) from the owner or occupier of such land and from any other person having an interest in such land. Any such release must be in a form approved by the Superintendent.'

73. Insert a new clause 29.3A

'29.3A Site Personnel Register

(a) From the commencement of work under the Contract until Practical Completion, the Contractor must maintain a register in the form set out in Annexure Part L ('Site Personnel Register') of all individuals who carry out work under the Contract on Site.

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(b) The Site Personnel Register must be available for inspection at all times by the Superintendent.

(c) The Contractor must provide statistical information in the form set out in Annexure Part L ('Site Personal Register Summary') to the Superintendent quarterly, upon Practical Completion and upon Final Completion and at such other times as the Superintendent may direct.'

74. Insert a new clause 35.5A as follows:

'35.5A Superintendent May Extend the Time for Practical Completion

Notwithstanding that the Contractor is not entitled to or has not claimed an extension of time, the Superintendent may in the Superintendent's sole and unfettered discretion and without being under any obligation to do so at any time and from time to time before the issue of the Final Certificate by notice in writing to the Contractor extend the time for Practical Completion for any reason.'

75. Insert a new clause 37.2 as follows:

'37.2 Updated As-Built Documentation

Within 10 Business Days of the completion of any rectification work under Clause 37.1, and in any case before the issue of a Final Certificate under the Contract, the Contractor must:

(a) update the As-Built Documentation to reflect the Work as built after the rectification work; and

(b) give the Superintendent a copy of the updated As-Built Documentation.

If the As-Built Documentation are not provided to the Superintendent in accordance with Clause 37.2, or are not reasonably acceptable to the Superintendent, the Superintendent will provide written notice to the Contractor advising of such failure and, if applicable, why the As-Built Documentation are not reasonably acceptable.

The Contractor must, upon receipt of a notice under Clause 37.2(b) amend the As-Built Documentation in accordance with the Superintendent's notice within 10 Business Days of the notice, failing which, and without limiting any other rights of the Principal, the Principal may itself or engage others to amend the As-Built Documentation and the costs incurred, together with the damages that the Principal is likely to suffer in connection with the Contractor's breach, will be a debt due and payable by the Contractor to the Principal.'

76. Insert a new clause 40.4A as follows:

'40.4A Innovation

The Contractor may submit, in writing to the Superintendent, a detailed proposal prepared at its own cost for changes to the Works which are likely to be of value to the Principal. The proposal must state that it is a proposal made pursuant to this Clause 40.4A and must include:

(a) information sufficient to demonstrate that the proposed change and any consequential effects of the proposed change on the Works, meet all Legislative Requirements, are suitable, appropriate and adequate for the intended purpose and will have no further consequential effects on the Works that have not been addressed in the proposal;

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(b) details of the effect, if any, that the proposed change will have on the construction program and the Date for Practical Completion;

(c) an all-inclusive price for the performance of the work the subject of the change, which may involve a deduction to the Contract Sum and which includes without limitation any time related costs and the costs of designing, documenting, obtaining approval, constructing, installing and commissioning, to make the proposed change; and

(d) any other information reasonably required by the Superintendent to assess the value of the proposed change to the Principal.

By submitting the proposal to the Superintendent, the Contractor warrants to the Principal that the proposed change and any consequential effects of the proposed change on the Works, meet all Legislative Requirements, are suitable, appropriate and adequate for the intended purpose and will have no further consequential effects on the Works that have not been addressed in the proposal.

The Superintendent may, at its sole and unfettered discretion, in writing and within a reasonable time, accept the Contractor's proposal and issue a direction under Clause 40.1 (as a variation for the Contractor's convenience) to carry out the proposed change, in which case the value of the variation and any agreed adjustment to the Date for Practical Completion must be in accordance with the accepted proposal, which will be binding upon the parties.

The Contractor will have no claim against the Principal for the Superintendent's failure or refusal to accept the Contractor's proposal.'

77. Insert a new clause 40.6 as follows:

'40.6 Work by others

The Superintendent may, under Clause 40.1, give a direction to the Contractor which has the effect of deleting the whole or any part of the work to be performed by the Contractor. The Superintendent may give such a direction in circumstances where the Principal either intends to or does carry out that work itself or engages another contractor to carry out that work (whether or not the work is carried out as part of the other work which the other contractor has been or is engaged to carry out or is the only work for which the other contractor has been engaged).'

78. Insert a new clause 42.1A as follows:

'42.1A Further Conditions for Payment Claims, Certificates, Calculations and Time for Payment

In addition to the provisions of Clause 42.1:

(a) if the time for:

(i) delivery of any Payment Claim; or

(ii) payment of any claim,

under Clause 42.1 falls due on a Saturday, Sunday or public holiday, the claim may be delivered or the payment made on the next date which is not a Saturday, Sunday or public holiday;

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(b) the Contractor will not be entitled to submit Payment Claims more frequently or at any time earlier than the time specified in the Contract;

(c) if, at any time prior to the date on which the Contractor is otherwise entitled to make a Payment Claim, the Contract requires or the Superintendent has directed the Contractor to deliver certain material or information in support of its Payment Claim, then the Contractor submitting that material or information is a precondition to the date on which the Payment Claim may be made by the Contractor;

(d) the amount to be allowed by the Superintendent in any certificate under Clause 42 as the amount due to the Contractor arising out of or in connection with the Contract must be calculated in accordance with the provisions of this Contract (including Clause 14C.3);

(e) as a precondition to the date on which the Payment Claim may be made by the Contractor, the Contractor must submit 1 Business Day prior to the submission of the relevant Payment Claim a completed statutory declaration in the form set out in Annexure Part F relating to that Payment Claim;

(f) as a precondition to the date on which the Payment Claim may be made by the Contractor, the Contractor must submit 1 Business Day prior to the submission of the relevant Payment Claim a completed statutory declaration in the form set out in Annexure Part M relating to that Payment Claim; and

(g) as a precondition to the date on which the Final Payment Claim may be made by the Contractor, the Contractor must submit 1 Business Day prior to the submission of the Final Payment Claim a completed statutory declaration in the form set out in Annexure Part G relating to that Final Payment Claim.'

79. Insert a new clause 42.6A as follows:

'42.6A Principal's Further Claims

Despite Clause 42.6, the Final Certificate will not in any proceedings be evidence of:

(a) the Works having been completed in accordance with the Contract; or

(b) any other matter or thing relating to an obligation of the Contractor,

to the extent that neither the Principal and Superintendent did not have actual knowledge of the Works not having been so completed or the other matter or thing at the time of the Final Certificate was issued.'

80. Insert a new clause 43A as follows:

'43A SUBCONTRACTOR CLAIMS

Despite any other provision of the Contract, the declarations to be provided by the Contractor under Clause 42.1A(e) and Clause 42.1A(f) must also include a declaration that the Contractor has no knowledge of any actual or threatened lodgement by any subcontractor of:

(a) a subcontractors charge under the Subcontractors' Charges Legislation (which has not been withdrawn); or

(b) a notice to suspend under the Security of Payment Act,

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other than as detailed in the declaration.'

81. Insert a new clause 44.12 as follows:

'44.12 Step-in rights

(a) In addition to any other rights of the Principal, the Principal may perform or have others perform, at the Contractor's cost, any obligations of the Contractor which the Contractor has failed to perform after no less than 5 Business Days' notice from the Principal requiring such performance.

(b) The costs incurred by the Principal will be reimbursed, as a debt due and payable, by the Contractor.

(c) Nothing in this subclause 44.12 will be taken to:

(i) prejudice any of the rights of the Principal arising from or in connection with the Contractor's breach; or

(ii) prevent the Principal from electing, at any time, to cease performing any obligations of the Contractor which the Principal has previously elected to perform.'

82. Insert a new clause 44.13 as follows:

*'**44.13 Statutory declaration***

The Contractor agrees that:

(a) at any time, the Superintendent may request that the Contractor provides a completed and signed statutory declaration (in a form and containing such detail as reasonably required by the Superintendent) from a representative of the Contractor who is in a position to know the facts confirming that the Contractor:

(i) is solvent;

(ii) is not subject to any act of insolvency as defined by Clause 44.11; and

(iii) is not seeking to take advantage of the safe harbour against insolvent trading available under Division 3, Part 5.7B of the Corporations Act 2001 (Cth); and

(b) the Contractor must provide such completed and signed statutory declaration within 2 Business Days of the request from the Superintendent.'

83. Insert a new clause 44.14 as follows:

*'**44.14 Termination not valid***

If the Principal terminates, or purports to terminate, under this Clause 44 or otherwise at law and it is subsequently held to be invalid, void or otherwise unenforceable then the Principal will be deemed to have terminated for convenience under Clause 48B as at the same date and time as the original notice of termination.

The Contractor waives any Claim it has or would have had, but for this Clause 44.14, arising out of or in connection with any termination, or purported termination, by the Principal under

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this Clause 44 or otherwise at law being subsequently held to be invalid, void or otherwise unenforceable.'

84. Insert a new clause 45A as follows:

'45A TERMINATION REFERENCE DATE

Notwithstanding anything else in the Contract to the contrary or which would otherwise limit the operation of this paragraph (including termination of the Contract), in the event of termination of the Contract for any reason, the Contractor is entitled to make a single Payment Claim in accordance with Clause 42.1 (whether or not the Contractor has satisfied the Claim Preconditions which would otherwise apply in respect of that Payment Claim) on and from the termination date, such termination date being considered a 'reference date' for the purposes of the Security of Payment Act ('Termination Reference Date').

For the avoidance of doubt, nothing prevents the Superintendent or the Principal setting off or withholding any amount arising out of, or in connection with, a failure of the Contractor to satisfy any Claim Precondition, where such failure is also a breach of this Contract or results in any other Claim of the Principal against the Contractor.

The Contractor may only include in the Payment Claim contemplated by this Clause 45A (such claim to be assessed in accordance with the Contract, including being subject to Clause 46), any amount which is due and payable to the Contractor under the Contract in respect of work under the Contract properly undertaken prior to or on the Termination Reference Date.

Unless instructed by the Principal to act otherwise, the Superintendent must not assess any other amounts and the Principal shall have no obligation to pay any other amounts, including additional amounts contemplated under either Clause 44 or Clause 48B, until such time as the Payment Claim contemplated by this Clause 45A has been made and assessed in a Payment Certificate by the Superintendent (or the time for making such a Payment Claim has elapsed under the Security of Payment Act).

The parties acknowledge and agree that where the Contract is terminated for any reason the Termination Reference Date will be the sole and final 'reference date' under the Security of Payment Act to survive beyond termination.

At any time following a termination, including after the submission and assessment of any Payment Claim contemplated by this Clause 45A, the Principal may request the Superintendent to issue a Payment Certificate, including to assess any amounts owing either to the Principal from the Contractor, or to the Contractor from the Principal, as the case may be.

Within 15 Business Days of receipt of such a request, the Superintendent must issue a Payment Certificate to the Principal and the Contractor. Any amount owing under the Payment Certificate must be paid by the Contractor to the Principal, or the Principal to the Contractor, as the case may be, within 15 Business Days of the date of the Payment Certificate.

Without limitation, the provisions of Clauses 14C.3 and 42.1A apply to the Payment Claim contemplated by this Clause 45A and in issuing the Payment Certificate contemplated under this Clause 45A the Superintendent must also have regard to the principles under Clauses 14C.3 and 42.1A.'

85. Insert a new clause 46.6 as follows:

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'46.6 No other payments

Where the Contractor is expressly entitled to submit a Claim or notice of Claim (or similar) during the Contract:

(a) the relevant document submitting or notifying the Claim:

(i) must not be in the form of (and is not) an invoice; and

(ii) is not a document requesting payment, or notifying an obligation on the Principal to make any payment, of the amount submitted or notified; and

(b) the Principal's liability for, and payment to the Contractor of, the amount submitted or notified is expressly dealt with in accordance with the Contract.'

86. Insert a new clause 48A as follows:

'48A WORK HEALTH AND SAFETY AUDIT

If and when required by the Superintendent, the Contractor must allow parties nominated by the Principal or the Superintendent (which may include the Principal's staff or external contractors) to enter and obtain all and any records pertaining to work health and safety issues, and to audit the Contractor's work methods and systems. The Contractor must provide those persons with all and any assistance, information and answers as may be sought.

The work performed under the preceding clause may give rise to the Principal wishing to issue corrective action notices. In addition to any other avenues available under the Contract:

(a) the Superintendent may direct the Contractor, by written notice, to carry out any required corrective action within the time specified in the notice, or

(b) the Principal may, if urgent action is necessary to protect people or property and the Contractor fails to take such action, take such action itself. The costs the Principal incurs will be a debt due from the Contractor.

If such a direction is given, the Contractor must inform the Superintendent in writing immediately upon completion of the corrective actions.'

87. Insert a new clause 48B as follows:

'48B TERMINATION FOR CONVENIENCE

The Principal may at any time terminate the Contract for its convenience (including where there has been no default or insolvency of the Contractor) by 2 days prior notice to the Contractor in which case the Contractor must, upon receipt of the notice:

(a) cease carrying out work under the Contract;

(b) if directed by the Principal to do so:

(i) assign or novate in favour of the Principal any subcontracts (including, without limitation, for the provision of any materials) or rights under any subcontracts entered into or obtained by the Contractor in connection with the carrying out of work under the Contract or completion of the Works; and

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(ii) terminate any other outstanding subcontracts and recover from the subcontractor any property, documentation, material or information of the Principal or the Superintendent;

(c) deliver to the Principal, all property, documentation or information of the Principal provided to the Contractor in connection with it carrying out work under the Contract; and

(d) deliver to the Principal any of the materials or work under the Contract which under the Contract has become the property of the Principal.

Upon termination of the Contract under this clause:

(e) if the Contractor:

(i) is subject to an act of insolvency as defined in Clause 44.11;

(ii) has not provided a statutory declaration in accordance with Clause 44.13; or

(iii) has provided a statutory declaration which the Contractor is required to provide in accordance with the Contract and such statements are determined by the Principal (acting reasonably) to be untrue, false or misleading (as applicable),

the Principal shall not be required to make further payment to the Contractor; or

(f) in all other circumstances, but subject to Clause 45A:

(i) Clause 45 will apply as if the Contract had been frustrated on the date of termination; and

(ii) the Contractor will have no claim against the Principal for any overhead, loss of profits, costs, expenses, damages, losses or other liabilities arising from or in connection with the termination.

Upon termination, the Contractor must deliver to the Principal the Contract Material including sketches, plans, designs, estimates, calculations, reports, models, computer source codes, articles, information, files and data produced by the Contractor up to the date of termination regardless of their stage of completion but without any liability in respect of the Contract Material which is incomplete by reason only of such termination.'

88. Insert a new clause 48C as follows:

'48C RECORDS AND ACCESS TO RECORDS

(a) The Contractor must make and keep and must ensure all Subcontractors make and keep accurate records of its tender and of the work under the Contract including but not limited to all documents referred to in the General Conditions of Contract, and the Principal's Project Requirements, design calculations, tender estimates, calculations and make ups, records as to progress of the Works, diary records of daily tasks, complete photographic records, quality system documents and record, manning and equipment records, results of the examination and testing of any work or materials, quality assurance records and reports, cost to date records, costs to complete

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calculations, time records, all cost records relating in any way to delays, variations and day works, all consultants reports and opinions obtained by the Contractor in relation to the matters referred to in this clause and all necessary supporting documents invoices records and related financial statements whether in writing or stored on any other medium whatsoever.

(b) Subject to the Contractor's right to claim legal professional privilege in respect of any Record, which is hereby maintained, the Principal or Superintendent will have the right to inspect and to copy at any time any Record. Notwithstanding anything to the contrary contained herein, the Superintendent may defer any determination direction or certification under Clauses 42.1, 42.6, and 44.6 or any decision of the Superintendent under Clause 47 until after such inspection is permitted by the Contractor. In the case of any Records stored on a medium other than in writing the Contractor must make available forthwith upon request such facilities as may be necessary to enable a legible reproduction thereof to be provided to the Principal.

(c) Without limiting any other obligation of the Contractor, for those Records stored on a medium licensed from a third party, where the Principal is a party to the communication, the Contractor must provide the Principal with a copy of such Records in DVD format readable on the Principal's information technology system, or such other format as may be reasonably required by the Principal, each month until the issuance of the Final Certificate.

(d) The Contractor will not be entitled to refuse inspection of any Record on any basis whatsoever other than on the basis that legal professional privilege attaches to the Record.

(e) The Records must not be destroyed without the prior written approval of the Principal and must, if so required by the Superintendent, be handed over to the Principal at the end of the Defects Liability Period.'

89. Insert a new clause 48D as follows:

'48D INFORMATION PRIVACY ACT

(a) If the Contractor collects or has access to Personal Information in order to carry out work under the Contract, the Contractor must:

(i) if the Principal is an "agency" within the meaning of the Information Privacy Act 2009 (Qld) (IPA), comply with Parts 1 and 3 of Chapter 2 of the IPA in relation to the discharge of its obligations under the Contract as if the Contractor was the Principal;

(ii) not use Personal Information other than in connection with carrying out work under the Contract, unless required or authorised by law;

(iii) not disclose, or transfer outside of Australia, Personal Information without the prior written consent of the Principal, unless required or authorised by law;

(iv) ensure that its officers, employees, agents and subcontractors do not access, use or disclose Personal Information other than in connection with carrying out work under the Contract;

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(v) ensure that its sub-contractors who have access to Personal Information comply with obligations the same as those imposed on the Contractor under this clause;

(vi) fully co-operate with the Principal to enable the Principal to respond to applications for access to, or amendment of a document containing an individual's Personal Information and to privacy complaints; and

(vii) comply with such other privacy and security measures as the Principal may reasonably require from time to time.

(b) On request by the Principal, the Contractor must obtain from its employees, officers, agents or subcontractors carrying out work under the Contract, an executed deed of privacy in a form acceptable to the Principal.

(c) The Contractor must immediately notify the Principal on becoming aware of any breach of Clause 48D.

(d) This clause will survive the termination or expiry of the Contract.

(e) In this clause, "Personal Information" is information or an opinion, including information or an opinion forming part of a database, whether true or not and whether recorded in a material form or not, about an individual whose identity is apparent or can reasonably be ascertained, from the information or opinion.'

90. Insert a new clause 48E as follows:

'48E PRIVACY ACT

In relation to any Personal Information (as defined in the Privacy Act 1988 (Cth) (Privacy Act) provided or to be provided by the Contractor in connection with the work under the Contract (whether as part of its tender or otherwise), the Contractor warrants to the Principal:

(a) the Contractor has obtained and will obtain the consent of each individual about whom any Sensitive Information (as defined in the Privacy Act) is provided; and

(b) the Contractor has or will within the time required by the Privacy Act ensure that each individual about whom any Personal Information is provided has received or will receive a written statement setting out all of the matters required by National Privacy Principle 1.3:

(i) in relation to disclosure of Personal Information to the Principal, the Superintendent and any consultant of the Principal requiring the information for the purposes set out in paragraph (ii); and

(ii) disclosing that the entities referred to in paragraph (i) will use the Personal Information for the purposes of reviewing and assessing matters relevant to the work under the Contract from time to time.

(c) The Contractor will comply with the provisions of the Privacy Act in relation to any Personal Information provided to the Contractor by the Principal, the Superintendent and any consultant of the Principal.'

91. <u>Insert a new clause 48F as follows:</u>

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'48F GST AND PAYG

48F.1 Definitions

(a) Terms defined by the GST Law and PAYG Law and used (without separate definition) in this clause, will have the meaning given to them by the GST Law or PAYG Law.

(b) For the purposes of this clause:

(i) "GST Law" has the meaning given to that term in A New Tax System (Goods and Services Tax) Act 1999 (Cth); and

(ii) "PAYG Law" means any Act dealing with or relating to the PAYG system referred to in Schedule 1 of the Taxation Administration Act 1953 (Cth).

48F.2 Payment of GST

Where a party is obliged to provide consideration to another party for a taxable supply made under or in connection with the Contract:

(a) any amount which the Contract provides:

(i) is to be the amount of the consideration;

(ii) is to (or may) be used to calculate the amount of the consideration (and the amount of the consideration so calculated); or

(iii) is included (provisionally or otherwise) in the consideration,

will be taken to include GST payable in connection with the taxable supply unless the amount is specifically stated to exclude GST;

(b) where, despite paragraph (a) of this Clause 48F.2, any consideration to be provided for a taxable supply is exclusive of GST, the party providing the consideration must also pay the GST payable in respect of the taxable supply, when the consideration is provided; and

(c) no other provision of the Contract will apply to give the Contractor any claim in connection with GST.

48F.3 Liability Net of GST

Where under or in connection with the Contract a party is required to pay an amount which is (or is to be calculated by reference to) any cost, expense, loss or other liability suffered or incurred by another party that amount must be (or be calculated by reference to) the cost, expense, loss or other liability net of any input tax credits available to the other party or the representative member of its GST Group.

48F.4 Notification of GST Registration Status

(a) The Contractor warrants to the Principal that:

(i) the Contractor is registered for GST; and

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(ii) the Contractor's ABN stated in the Contract (or otherwise notified by the Contractor to the Principal) is correct.

(b) The Contractor must notify the Principal immediately if it ceases to be registered for GST at any time.

48F.5 Tax Withholding

(a) Whenever the Contractor does not have an ABN or the Principal becomes aware that the Contractor's ABN notified to it is incorrect or the Principal otherwise reasonably considers itself bound by PAYG Law to do so, the Principal will be entitled to withhold from any payment otherwise due to the Contractor under or in connection with the Contract, amounts calculated and to be withheld in accordance with the PAYG Law.

(b) Subject to paragraph (c) of this Clause 48F.5, each time the Contractor makes a claim for any payment under or in connection with the Contract, the Contractor will be taken to warrant to the Principal that it is an Australian resident for the purposes of the foreign resident withholding provisions in Subdivision 12-FB of the Taxation Administration Act 1953 (Cth).

(c) The warranty in paragraph (b) of this Clause 48F.5 will not apply to the extent the Contractor has notified the Principal in writing that it is not an Australian resident before any Payment Claim is made.

48F.6 Recipient Created Tax Invoices

If Annexure Part A in the Contract Header has been completed to confirm that Clause 48F.6 applies, the parties agree that for any taxable supplies to the Principal by the Contractor under or in connection with the Contract:

(a) the Principal must issue tax invoices and adjustment notes in respect of those supplies;

(b) the Contractor must not issue tax invoices or adjustment notes in respect of those supplies;

(c) the Principal acknowledges that it was registered for GST when it entered into the Contract and that it will notify the Contractor if it ceases to be registered;

(d) the Contractor must notify the Principal immediately it becomes aware of an adjustment event occurring in respect of those supplies; and

(e) at any time, the Principal may give to the Contractor written notice that it does not intend issuing recipient created tax invoices for the whole or any taxable supplies to the Principal by the Contractor.

48F.7 Tax Invoices

(a) A party making a taxable supply must issue to the other a tax invoice or adjustment note (as the case may require) within five Business Days after each of the following occurring in relation to that taxable supply:

(i) the party submitting a claim for payment;

(ii) the Superintendent certifying an amount for payment different to the amount claimed;

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(iii) the amount for payment being otherwise determined to be different to the amount claimed or (if applicable) certified,

unless the Principal is providing Principal created tax invoices for the taxable supply under Clause 48F.6.

(b) For the purposes of GST Law, upon the occurrence of each of the events specified in paragraph (a)(i), (ii) or (iii) of this Clause 48F.7, the Principal must be taken to have requested the Contractor to provide to the Principal the tax invoice or adjustment note referred to in paragraph (a) of this Clause 48F.7.

(c) Until the Principal notifies the Contractor otherwise, the Superintendent is authorised to provide to or receive from the Contractor tax invoices or adjustment notes (as the case may be) on the Principal's behalf.'

92. Insert a new clause 48G as follows:

'48G NO FETTER AND STATUTORY AUTHORITY

48G.1 Principal's statutory rights and duties

(a) Unless otherwise expressly provided in the Contract, nothing in the Contract gives rise to any duty on the part of the Principal to consider interests other than its own interests when exercising any of its rights or carrying out any of its obligations in accordance with the Contract.

(b) Notwithstanding anything expressly provided or implied in the Contract to the contrary, the parties agree that:

(i) the Principal is not obliged to exercise any executive or statutory right or duty, or to influence, over-ride, interfere with or direct any other government agency in the proper exercise and performance of any of its executive or statutory rights or duties; and

(ii) nothing has the effect of constraining the Principal or placing any fetter on the Principal's discretion to exercise or not to exercise any of its executive or statutory rights or duties.

(c) The Contractor is not entitled to make any claim against the Principal relating to any exercise or not to exercise any of its executive or statutory rights or duties.

48G.2 Reasonable endeavours of the Principal

Any statement or requirement in the Contract providing that the Principal will act in 'good faith' or use or exercise 'reasonable endeavours' or 'act reasonably' in relation to any matter or outcome, means that the Principal:

(a) will take steps to deal with the relevant matter, or bring about the relevant outcome, so far as it is reasonable able to do so having regard to its resources and other responsibilities;

(b) does not guarantee the relevant matter or outcome will be brought about; and

(c) is under no obligation to:

(i) exercise a right of any government agency, or to influence, over-ride, interfere

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with or direct any other government agency in the proper exercise and performance of its legal, statutory or executive duties and functions;

(ii) exercise a power or discretion in a manner that the Principal regard as not in the public interest;

(iii) develop or implement new policy or a change in policy;

(iv) procure any new legislation or a change in legislation (including by-laws); or

(v) act in any way that the Principal regards as not in the public interest.'

93. Insert a new clause 48H as follows:

'48H PROJECT TRUSTS

(a) This Clause 48H will apply only to the extent that:

(i) Chapter 2 of the Security of Payment Act applies to the Contract; or

(ii) the Principal advises the Contractor that it applies to the Contract.

(b) If this Clause 48H applies pursuant to clause 48H(a), then the Contractor:

(i) agrees to comply with all the obligations of a "Trustee" pursuant to Chapter 2 of the Security of Payment Act;

(ii) agrees to:

(A) promptly upon establishing of a project trust account in accordance with Chapter 2 of the Security of Payment Act, and upon request by the Principal, provide to the Principal documentary evidence, to the reasonable satisfaction of the Principal, of the Contractor's compliance with subparagraph (b)(i) of this Clause;

(B) without limiting subparagraph (A) provide all documentation which the Contractor is required to provide to the Principal under Chapter 2 of the Security of Payment Act (including as may be prescribed by any regulations in connection with Chapter 2 of the Security of Payment Act; and

(C) provide all assistance to the Principal reasonably necessary for Principal to comply with its obligations under Chapter 2 of the Security of Payment Act;

(iii) warrants the accuracy of the information provided by the Contractor to the Principal pursuant to this Clause;

(iv) in relation to the information provided by the Contractor to the Principal pursuant to this Clause, agrees to notify the Principal of any change to the information provided or circumstances which give rise to that information otherwise becoming incomplete, outdated or inaccurate;

(v) agrees that it will not, by any act or omission, do anything that would cause the Principal to be in breach of Chapter 2 of the Security of Payment Act;

(vi) allow the Principal (or a nominated auditor) to undertake, an audit of the

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Contractor's records to ensure that all information provided by the Contractor is complete and accurate and the Contractor must cooperate with the Principal or its nominated the auditor in performing its functions under this Clause;

(vii) to the extent permitted by law, agrees to indemnify the Principal for all loss or liability suffered or incurred by the Principal arising from or in connection with the Contractor's failure to comply with this Clause or the Principal's exercise of its rights or obligations under the Security of Payment Act as a consequence of the Contractor's failure to comply with this Clause or the Security of Payment Act; and

(viii) agrees that despite any other provision of the Contract, the Principal may make payments due to the Contractor under the Contract by making those payments in accordance with the Security of Payment Act.'

94. Insert a new clause 48I as follows:

'48I ADDITIONAL CLAUSES IN CONTRACT HEADER

The Contractor must comply with any additional clauses set out in Schedule 4 of the Contract Header specified in that schedule as applying as if those clauses were included in these General Conditions of Contract and must be read as part of the Contract.'

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Annexure Part C — Approved Form of Unconditional Undertaking (Clause 5.3)

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

CONTRACT for [#insert description] (**the Contract**)

At the request of [#insert Contractor] (**the Contractor**)

and in consideration of Gold Coast City Council ABN 84 858 548 460 **(the Principal)**

accepting this undertaking [#insert financial institution details]

(**the Financial Institution**) unconditionally undertakes to pay on demand any sum or sums which may from time to time be demanded by the Principal to a maximum aggregate of $[#insert] (**the Sum**).

The undertaking is to continue

(i) until notification has been received from the Principal that the Sum is no longer required by the Principal; or

(ii) until this undertaking is returned to the Financial Institution; or

(iii) until payment to the Principal by the Financial Institution of the whole of the Sum.

Should the Financial Institution be notified in writing, purportedly signed by or on behalf of the Principal that the Principal desires payment to be made of the whole or any part or parts of the Sum, such notification to be delivered to any branch of the Financial Institution located within Australia, it is unconditionally agreed that the Financial Institution will make payment or payments to the Principal forthwith without reference to the Contractor and notwithstanding any notice given by the Contractor not to pay same.

Provided always that the Financial Institution may at any time without being required so to do pay to the Principal the Sum less any amount or amounts it may previously have paid under this undertaking or such lesser sum as may be required and specified by the Principal and thereupon the liability of the Financial Institution hereunder will immediately cease.

The Principal must not assign or transfer its rights under this undertaking.

Dated at day of 20

SIGNED for and on behalf of [#insert financial institution]

By its Attorney(s) [#insert names] Pursuant to Power of Attorney No)

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who hereby warrant that he has/they have not received notification of revocation of his/their appointment.) Attorney

in the presence of -) Witness

Branch of Issue: Telephone:

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Annexure Part D — Not used

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

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Annexure Part E — Deed of Novation (Clause 10)

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

This Deed made the ..... day of 2020

between ..... (**Principal**)

of ..... ACN .....

and.....(**Contractor**) of

..... ACN .....

and.....(**Subcontractor**) of

..... ACN .....

witnesses that:

1. Upon receipt by the subcontractor of all moneys owing under the prior secondary contract:
   (a) the Contractor must punctually perform the obligations of the Principal under the prior contract prescribed in the schedule hereto as far as they are not performed. The Contractor acknowledges itself bound by the provisions of the prior contract as if the Contractor had been named as the Principal in the prior contract;
   (b) the Subcontractor must punctually perform like obligations and be bound to the Contractor as if the provisions of the prior contract were incorporated herein; and
   (c) the Principal and the Subcontractor will each release and forever discharge the other from the further performance of the prior contract and from all claims and demands in connection with the prior contract.
2. The Principal and the Subcontractor each warrant to the Contractor that preliminary design or Selected Subcontract Work, as the case may be, carried out to the date hereof, is in accordance with the provisions of the prior contract.
3. This Deed will be governed by the laws in force in the State or Territory stated in the provisions of the agreement between the Principal and the Contractor and in the event that no State or Territory is so stated then in accordance with the law for the time being in force in the State or Territory in which the project is being carried out.

Schedule

Documents: _____

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In witness whereof the parties have executed this Deed of Novation by affixing their seals.

THE COMMON SEAL of)
(PRINCIPAL) ACN was affixed to this)
document in the presence of:)

Secretary/Director

Name (please print)

Director

Name (please print)

THE COMMON SEAL of)
(CONTRACTOR) ACN was affixed to this)
document in the presence of:)

Secretary/Director

Name (please print)

Director

Name (please print)

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THE COMMON SEAL of)
(SUBCONTRACTOR) ACN was affixed to)
this document in the presence of:)

Secretary/Director

Name (please print)

Director

Name (please print)

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Annexure Part F — Statutory Declaration – Progress Payments (Clause 42.1A and 43.2)

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

CONTRACT NO.: #To Be Completed#
#NAME OF PROJECT#

QUEENSLAND)
TO WIT)

I, ...
of..... in the State of Queensland,
do solemnly and sincerely declare that

a) I am the #(**Declarant's Status**)# for #**Name and ACN of Contractor**# (**Contractor**) engaged by the Gold Coast City Council to carry out the works known as Contract No. #**To Be Completed**# (**Works**) and I am duly authorised to make this declaration on the Contractor's behalf.

b) All workers (including all workers employed by Subcontractors) who at any time have been engaged on work under the Contract have been paid, in accordance with the relevant award or industrial instrument (and otherwise in accordance with all relevant Legislative Requirements, including the *Fair Work Act 2009* (Cth)), all moneys due and payable to them up to date of this declaration in respect of their engagement on the work under the Contract.

c) All subcontractors, suppliers and consultants of the Contractor have been paid all that has been claimed by them up to the date of this declaration in respect of their part of the work under the Contract other than in respect of the following amounts for the following reasons:

Subcontractor's name	Amount still unpaid	Details of unpaid payment claim	Date subcontractor carried out relevant work or supplied related goods or services	Reason amount was not paid in full

d) The Contractor:
   i) has included in each Payment Claim submitted to the date of this statutory declaration; and
   ii) will include in the Payment Claim to which this statutory declaration relates,

   details of the value (calculated in accordance with the Contract including Clause 14A) of all work under the Contract done as at the date of the relevant statutory declaration and the details of all other moneys then due to the Contractor, pursuant to the provisions of the Contract, as at the date of the relevant statutory declaration.

e) All subcontractors and any sub-subcontractors performing work under the Contract have been approved by the Superintendent in accordance with Clause 9.2 of the Contract.

f) The Site Personnel Register maintained in accordance with Clause 29.3A is current and correct.

g) The Contractor has informed all subcontractors and any sub-subcontractors performing work under the Contract of the existence of the Security of Payment Act and the Subcontractors' Charges Legislation.

h) The Contractor has no knowledge of any actual or threatened lodgment by any subcontractor of:
   i) a subcontractors charge under the Subcontractors' Charges Legislation which has not been withdrawn; or
   ii) a notice to suspend under the Security of Payment Act, other than in respect of the following:
   ……..

i) The Contractor has complied with all of its insurance requirements under the Contract including that all policies of insurance required under Clauses 18, 19, 20 and 21 of the Contract are still maintained

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at the levels required under the Contract. The Contractor has also provided evidence of such insurances when required under Clause 22 of the Contract.

j) The Contractor has in place all necessary certificates, licences, consents, permits and other approvals that are required for the Contractor to perform its obligations under the Contract and those certificates, licences, consents, permits and other approvals are fully paid for.

k) If the Australian Government Building and Construction Industry Work Health and Safety Accreditation Scheme (**Scheme**) applies to the Contract, as specified in the Contract Header, the Contractor has complied with all conditions of the Scheme and the performance requirements in the National Construction Code, including in relation to building materials, up to date of this declaration.

l) The Contractor is solvent and is not subject to an act of insolvency as that term is defined in Clause 44.11.

AND I MAKE THIS SOLEMN DECLARATION CONSCIENTIOUSLY BELIEVING THE SAME TO BE TRUE, AND BY VIRTUE OF THE PROVISIONS OF THE "OATHS ACT OF 1867 (Qld)".

Signed ..... Date.....

Taken and Declared before me, at .....)
this ..... day of..... 20……)

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Annexure Part G — Statutory Declaration – Final Payment (Clause 42.1A)

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

CONTRACT NO.: #To Be Completed#
#NAME OF PROJECT#

QUEENSLAND)
TO WIT)

I, ...
of ..... in the State of Queensland,
do solemnly and sincerely declare that:

a) I am the #**Declarant's Status#** for **#Name and ACN of Contractor#** (**Contractor**) engaged by the Gold Coast City Council to carry out the works known as Contract No. **#To Be Completed#** (**Works**) and I am duly authorised to make this declaration on the Contractor's behalf.

b) All wages and claims of workmen employed on or about the works, (including all workers employed by subcontractors) have been paid all amounts due and payable to them (and otherwise have been paid in accordance with all relevant Legislative Requirements, including the *Fair Work Act 2009* (Cth)).

c) All subcontractors, suppliers and consultants of the Contractor have been paid all that has been claimed by them in respect of their part of the work under the Contract other than in respect of the following amounts for the following reasons:

Subcontractor's name	Amount still unpaid	Details of unpaid payment claim	Date subcontractor carried out relevant work or supplied related goods or services	Reason amount was not paid in full

d) The Contractor has no knowledge of any actual or threatened lodgment by any subcontractor of:
   i) a subcontractors charge under the Subcontractors' Charges Legislation which has not been withdrawn; or
   ii) a notice to suspend under the Security of Payment Act, other than in respect of the following:
   ……..

e) If the Australian Government Building and Construction Industry Work Health and Safety Accreditation Scheme (**Scheme**) applies to the Contract, as specified in the Contract Header, the Contractor has complied with all conditions of the Scheme and the performance requirements in the National Construction Code, including in relation to building materials, up to date of this declaration.

f) The Contractor is solvent and is not subject to an act of insolvency as that term is defined in Clause 44.11 of the Contract.

AND I MAKE THIS SOLEMN DECLARATION CONSCIENTIOUSLY BELIEVING THE SAME TO BE TRUE, AND BY VIRTUE OF THE PROVISIONS OF THE "OATHS ACT OF 1867 (Qld)".

Signed ..... Date.....
Taken and Declared before me, at .....)
this ..... day of..... 20……)
A Justice of the Peace

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Annexure Part H — Not used

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

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Annexure Part I — Not used

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

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Annexure Part J — Not used

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

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Annexure Part K — Form of request for approval of subcontractors and sub-subcontractors (Clause 9.2(b))

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

REQUEST FOR APPROVAL TO SUBCONTRACT

Re: Contract for .....
(specify the Contract)

Pursuant to Clause 9.2(b) of the General Conditions of Contract I request approval to enter into a subcontract for .....
.....
(specify the nature of the work)

The proposed subcontractor is .....
(specify the Subcontractor's name)

ACN: ..... ABN: .....

of .....
(specify the Subcontractor's address)

Licence Number: ..... Category: .....

Trade: ..... Restrictions (*if any*): .....

and the total value of the proposed subcontract is $ .....
(specify the subcontract value)

I confirm that:

(i) the proposed subcontract documents incorporate AS2545 – 1993 or AS4303 – 1995 Australian Standard Subcontract Conditions (as applicable) as the general conditions of contract, amended only to reflect the Head Contract Conditions of Contract*;
[delete if the total value of the proposed subcontract is less than $50,000]*

(ii) the payment recording system required by Clause **Error! Reference source not found.** of the General Conditions of Contract has been established;

(iii) the proposed subcontractor:

(A) has a personal services business determination in effect from the Australian Taxation Office under the *Income Tax Assessment Act 1997* (Cth); or

(B) in relation to the work to be performed under the subcontract:

(I) will be paid to achieve a specified result or outcome; and

(II) is required to supply the plant and equipment or tools of trade needed to perform the work; and

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(III) will be liable for the cost of rectifying any defect in the work performed.

I warrant that if approval is granted, the subcontract will be entered into in accordance with the above.

Signed .....
Contractor

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REQUEST FOR APPROVAL TO SUB SUBCONTRACT

Re: Subcontract for .....
(specify the Subcontract and Head Contract)

Subcontractor .....
(specify the subcontractor proposing to sub subcontract)

Pursuant to Clause 9.2(g) of the General Conditions of Contract I request approval to allow a subcontractor to enter into a sub subcontract for .....

.....
(specify the nature of the work)

The proposed sub subcontractor is .....

.....
(specify the sub subcontractor's name)

ACN: ..... ABN: .....

of .....

.....
(specify the sub subcontractor's address)

Licence Number: ..... Category: .....

Trade: ..... Restrictions (*if any*): .....

and the total value of the proposed sub subcontract is $ .....
(specify the sub subcontract value)

I confirm that:

(i) the proposed sub subcontract documents incorporate AS2545 – 1993 or AS4303 – 1995 Australian Standard Subcontract Conditions (as applicable) as the general conditions of contract, amended only to reflect the Head Contract Conditions of Contract*;
[delete if the total value of the proposed sub subcontract is less than $50,000]*

(ii) the payment recording system required by Clause 43 of the conditions of contract has been established;

(iii) the proposed sub subcontractor:

(A) has a personal services business determination in effect from the Australian Taxation Office under the *Income Tax Assessment Act 1997* (Cth); or

(B) in relation to the work to be performed under the sub subcontract:

(I) will be paid to achieve a specified result or outcome; and
(II) is required to supply the plant and equipment or tools of trade needed to perform the work; and
(III) will be liable for the cost of rectifying any defect in the work performed.

I warrant that if approval is granted, the sub subcontract will be entered into in accordance with the above.

Signed ..... *Contractor*

Signed ..... *Subcontractor*

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Annexure Part L — Site Personnel Register (Clause 29.3A)

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

SITE PERSONNEL REGISTER

Project Name: **Project Location:**

Contractor's Name: **Project Registration Number:**

Name	Is this person an owner/partner of an approved subcontractor/ sub subcontractor ? Y or N (if N please complete the rest of the table as applicable)	Is this person remunerated in accordance with an award or industrial instrument? Y or N (if Y please complete column (d) and (e) only; if N complete columns (e) to (i) only)	Name of award or industrial instrument ? (if applicable)	Name of this person's Employer ?	Is a WorkCover premium paid in respect of this person? Y or N	Are superannuation contributions made in respect of this person? Y or N	Is tax withheld from payments made to this person? Y or N	Is Payroll tax paid in respect of this person where applicable ? Y or N or N/A
(a)	(b)	(c)	(d)	(e)	(f)	(g)	(h)	(i)

Note: If the answer to the question in column (b) is NO, the individual concerned will be considered to be a "worker" as that term is defined in the *Workplace Health and Safety Act 2011* and the *Workers' Compensation and Rehabilitation Act 2003* unless evidence can be provided to the contrary.

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SITE PERSONNEL REGISTER SUMMARY

Project Name: **Project Location:**

Contractor's Name: **Project Registration Number:**

Response	Total
1. Total number that responded **Y** to the question in column (b)?	
2. Total number that responded **N** to the question in column (b) and **Y** to the question in column (c)?	
3. Total number that responded **N** to the question in column (b) and **N** to the question in column (c)?	
4. Total number that responded **N** to the question in column (f)	
5. Total number that responded **N** to the question in column (g)	
6. Total number that responded **N** to the question in column (h)	
7. Total number that responded **N** to the question in column (i)	

Date: .....

Signature: .....

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Annexure Part M — Statutory Declaration – Subcontractor (Clause 43.2)

Annexure to the Australian Standard General conditions of contract for design and construct AS 4300-1995

STATUTORY DECLARATION BY CONTRACTOR

Oaths Act 1867

Queensland

To Wit

I, ... of .....

.....

in the State of Queensland, do solemnly and sincerely declare that, in relation to the Contract between the Gold Coast City Council through .....

.....

(**the Principal**) and .....

.....

(**the Contractor**) for .....

.....(**the Contract**).

1. I hold the position of

   .....

   .....

   I am in a position to know the facts contained herein and to bind the Contractor by the terms of this declaration, and I am duly authorised by the Contractor to make this declaration on its/their behalf.

2. All subcontracts and sub subcontractors performing work under the Contract have been approved by the Superintendent in accordance with Clause 9.2.

3. All the Contractor's workers who at any time have been engaged on work under the Contract by the Contractor have been paid, in accordance with the relevant award or industrial instrument (and otherwise in accordance with all Legislative Requirements, including the *Fair Work Act 2009* (Cth)), all moneys due and payable to them up to the date of submission by the Contractor of Payment Claim No .....

4. All subcontractors of the Contractor have been paid all that is due and payable to them up to the date of submission by the Contractor of Payment Claim No.....in respect of their part of the work under the Contract.

5. The Site Personnel Register maintained in accordance with Clause 29.3A of the General Condition of Contract is current and correct.

6. All subcontractors and sub subcontractors performing work under the Contract have been informed of the existence of the Security of Payment Act and the Subcontractors' Charges Legislation.

And I make this solemn declaration conscientiously believing the same to be true and by virtue of the provisions of the ***Oaths Act 1867***.

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TAKEN AND DECLARED before me)
)
.....)
)
.....) .....
(Name in full)) *Contractor*
at .....)
)
in the State of .....)
) .....
this ..... day of ..... 20 ...) A Justice of the Peace/ Legal
) Practitioner/ Commissioner for
) Declarations

DRAFT

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STATUTORY DECLARATION BY SUBCONTRACTOR

Oaths Act 1867

Queensland
To Wit
I, ... of .....
.....
in the State of Queensland, do solemnly and sincerely declare that, in relation to the Contract between the Gold Coast City Council through .....
.....
.....
(**the Contractor**) for .....
.....(**the Contract**)
..... *[name of Subcontractor]* .....
(**the Subcontractor**) is a Subcontractor to the Contractor for part of the work under the Contract, namely:
.....
.....

1. I hold the position of .....
   I am in a position to know the facts contained herein and to bind the Subcontractor by the terms of this declaration, and I am duly authorised by the Subcontractor to make this declaration on its/their behalf.

2. All the Subcontractor's workers who at any time have been engaged on work under the Contract by the Subcontractor have been paid in accordance with the relevant award or industrial instrument (and otherwise in accordance with all Legislative Requirements, including the *Fair Work Act 2009* (Cth), all moneys due and payable to them up to the date of submission by the Contractor of Payment Claim No .....

3. All subcontractors of the Subcontractor have been paid all that is due and payable to them up to the date of submission by the Contractor of Payment Claim No.....in respect of their part of the work under the Contract.

And I make this solemn declaration conscientiously believing the same to be true and by virtue of the provisions of the ***Oaths Act 1867***.

TAKEN AND DECLARED before me)
)
.....)
)
.....) .....
(Name in full)) *Subcontractor*
at.....)
)
in the State of .....)
) .....
this ..... day of ..... 20 ...) A Justice of the Peace/ Legal
) Practitioner/ Commissioner for
) Declarations

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